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NO. 101386-8

SUPREME COURT OF THE STATE OF WASHINGTON

ADELINA GABRIELA SUAREZ,

Respondent,

v.

THE STATE OF WASHINGON, TAMMY WINEGARD, and her community and property, JULIANNE MOORE and her marital community property, and TAMMY MASTERS, and her community property,

Petitioners.

SUPPLEMENTAL BRIEF OF PETITIONERS

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I. INTRODUCTION

Under the Washington Law Against Discrimination (WLAD), a religious accommodation is an undue hardship for an employer if it involves more than a de minimis cost. This standard is reflected in this Court's precedent, Washington Human Rights Commission guidance, and the Washington Pattern Jury Instructions. Religious employees can and do prevail on religious accommodation claims under this standard. Any change to the standard should come from the Legislature or the Human Rights Commission, an approach that would protect employers' good-faith reliance on existing law.

Though this Court should adhere to the existing WLAD standard, Adelina Suarez's proposed accommodations are undue hardships under any standard. Suarez accepted a position working night shifts Wednesday through Sunday at the Yakima Valley School, which provides 24/7 care to adults with disabilities. Working as scheduled was an essential function of the position. While the School always allowed Suarez time off

when requested with reasonable notice, it denied a request made with just one day's notice at a time when the School was short-staffed. Suarez ignored the denial and chose to skip her shift, causing a coworker to be forced to work mandatory overtime. The WLAD does not require that employers tolerate actions that jeopardize vulnerable residents' safety or unreasonably impose on coworkers. Suarez's wrongful discharge claim fails for the same reason.

This Court should reverse the Court of Appeals and reinstate the superior court's summary judgment order.

II. ISSUES PRESENTED FOR REVIEW

1. Did the Court of Appeals err when it applied a standard from outside the WLAD to hold that a religious accommodation involves an undue hardship only if it involves "significant difficulty or expense" for an employer?

2. Did Suarez's requested time off, which compelled another employee to work mandatory overtime with little notice, involve an undue hardship?

3. Would violating a collective bargaining agreement and seniority rights to change Suarez's schedule be an undue hardship?

4. Did the Court of Appeals err when it applied its new undue hardship standard to the wrongful discharge claim?

III. STATEMENT OF THE CASE

A. The School Requires 24/7 Staffing to Care for Vulnerable Adults

Yakima Valley School (the School) is a certified nursing facility that provides 24/7 care for adults with disabilities. CP at 348. The School is part of the Department of Social and Health Services Developmental Disabilities Administration. CP at 54. Certified nursing assistants (CNAs) provide care to residents, including assistance with medical or behavioral emergencies and with activities of daily living. CP at 161.

Because the School provides around-the-clock care, each CNA position is assigned a particular shift (day, swing, or night) and particular days off. CP at 165. Many staff members prefer a position with "at least one weekend day" off. CP at 319.

The School has processes for ensuring minimum staffing levels. First, it schedules more than the minimum number of CNAs for each shift. CP at 230. Second, it maintains lists of on-call staff who volunteer for overtime. CP at 234-35. Third, the School identifies other staff on the campus who have a CNA credential. CP at 235. Finally, the School can require CNAs assigned to other shifts to work mandatory overtime. CP at 165.

B. A Collective Bargaining Agreement Governs Various Conditions of Employment, Including Schedules

Employment at the School is governed by a collective bargaining agreement (CBA). *E.g.*, CP at 149, 165. Under the CBA, new permanent employees in Suarez's position serve a twelve-month probationary period. Collective Bargaining Agreement [CBA] at 12, M-28 (July 1, 2019), https://ofm.wa.gov/sites/default/files/public/labor/agreements/1

9-21/wfse_gg.pdf;[1] CP at 221. A probationary employee may be separated from employment at any time. CBA at 12; CP at 68.

When a CNA position with a different shift or different days off becomes available, non-probationary employees may bid on it through a seniority-based process. CBA at 2-3; *see also* CP at 165, 221-22, 319, 357. If no permanent employees bid on the position, probationary employees may apply. CP at 241.

The CBA also governs leave. Employees at 24/7 facilities may submit vacation preferences by May 1, and leave is granted based on business needs and seniority. CBA at 43-44; CP at 319. Employees on the leave schedule have priority over later requests. CBA at 43; CP at 319. Employees are also entitled to two days of unpaid religious leave, if requested with at least 14 days' notice. CBA at 68; CP at 354. In addition, School

[1] This Court may take judicial notice of the CBA pursuant to ER 201. As the CBA matches the descriptions in the record, the accuracy of this document cannot reasonably be questioned.

employees may request voluntary shift exchanges, with seven days' notice. CBA at 26.

Under the CBA, employees may be required to work mandatory overtime. CBA at 33; CP at 165. Employees were initially allowed to refuse mandatory overtime once per quarter and, beginning July 2019, twice per quarter. CP at 149, 151.

C. Suarez Accepted a Position Knowing it Required Saturday Work

Suarez accepted a CNA position with the School in October 2018. CP at 115-16. That night-shift position had Mondays and Tuesdays off. CP at 159. Suarez knew that the position she accepted required Saturday work. CP at 124-25. It is undisputed that chief shop steward Julianne Moore explained how to request time off, and Moore also specifically informed Suarez of the process for obtaining another position. CP at 319. Suarez claims that her supervisor, Tammy Masters, did not tell her that she had to apply for a new position, CP at 246, but does not deny that Moore explained the process to her.

Suarez attends religious services on Tuesdays and usually three times on Saturdays. CP at 118-21. None of the Saturday services conflicted with her work schedule. CP at 120, 246. In addition, her church celebrates seven feasts. CP at 120. Whether Suarez's religion *required* that she attend church services is unclear. *Compare* CP at 119-21 (deposition testimony that she "elected"—and was not required—to attend church), *with* CP at 244-45 (contrary post-deposition declaration).

D. Suarez Had Repeated Attendance Issues

The School repeatedly accommodated Suarez's requests for leave, both religious and non-religious. In February 2019, the School approved one week of leave for Suarez to attend a Passover feast in April. CP at 55, 134, 225-28. In May 2019, though it is "something not normally approved of," the School approved over two weeks of paid emergency non-religious leave. CP at 228. Suarez reports that she "also got time off for Pentecost and that was no problem." CP at 247.

Despite the School's scheduling flexibility, Suarez repeatedly refused mandatory overtime more than authorized by the CBA and was admonished by her supervisor.[2] CP at 128-32, 151-53. Despite the admonishments, Suarez impermissibly refused mandatory overtime four more times in a 30-day period in July and August 2019. CP at 149.

E. Suarez Did Not Apply for a Position That Came Available

In September 2019, a swing shift position with Fridays and Saturdays off became available. CP at 241, 357. An email is automatically sent to all employees, including Suarez, through careers.wa.gov regarding open positions. CP at 242, 357. Suarez asserts that her supervisor did not personally tell her about the open position, CP at 246, but does not deny that she was sent an email regarding the position. Suarez was free to apply for this position but did not do so. CP at 242, 357. Following the email

[2] There is no suggestion in the record that Suarez's overtime refusals were based on religion.

notice, another School employee, who started after Suarez, applied and was selected for the position. CP at 357.

F. After Suarez Knowingly Skipped Work, the School Fired Her

In September 2019, the School again accommodated Suarez to the extent feasible. Though she would have known the dates of her religious festivals by April, CP at 244-45, Suarez waited until September to request time off. CP at 378. Initially, she requested paid leave, but that was promptly denied because another employee with priority under the CBA had previously requested paid leave. CP at 319, 378. Suarez's supervisor told Suarez that she could request unpaid leave from School superintendent Tammy Winegar. CP at 378. Only Winegar, as the School's appointing authority, can approve requests for leave-without-pay. CP at 229, 320, 358.

Suarez waited another two weeks—until just *one* day before her requested leave would begin—to contact Winegar. CP at 138-39, 166, 171. Winegar responded within hours on September 27, approving leave-without-pay for October 12, 13,

19, and 20, but denying leave for September 28 and 29, CP at 171, nights when the school was too short-staffed, CP at 231, 233-35.

Suarez worked her night shift on September 28, drove across the State the next morning, and then waited until the afternoon to notify the School that she was not coming in. CP at 143, 173, 247.

As a result of Suarez's decision to skip work, one of her coworkers was required to work mandatory overtime. CP at 231. The School required 21 CNAs "to safely provide supports to the residents . . . during the night." CP at 381. Twenty-four positions were assigned to the shift, but due to vacant positions, pre-scheduled vacations, and call-ins, six staff members had to work overtime, including one who was forced to work mandatory overtime. CP at 230-31.

Winegar decided to end Suarez's probationary employment based on Suarez's attendance issues, including refusing mandatory overtime and Suarez's decision to not show

up to work when she knew it would be short-staffed without her. CP at 350.

G. The Superior Court Granted Summary Judgment But the Court of Appeals Reversed in Part on a Novel Theory

Suarez sued the State; School Superintendent Tammy Winegar; Suarez's supervisor Tammy Masters; and shop steward Julianne Moore (collectively, "the School"), alleging violations of the WLAD and wrongful termination in violation of public policy. CP at 3-6. The parties filed cross-motions for summary judgment, and the superior court granted the School's motion. CP at 97, 199, 402-04. The Court of Appeals affirmed dismissal of Suarez's WLAD claims for discrimination and retaliation because Suarez waived those claims. *Suarez v. State*, 23 Wn. App. 2d 609, 618-19, 517 P.3d 474 (2022). But, in a non-unanimous decision, the Court of Appeals reversed summary judgment on Suarez's failure-to-accommodate WLAD and wrongful termination claims based on its application of a novel undue hardship standard. *Id.* at 623-35.

This Court granted the School's petition for review of issues related to the undue hardship standard and denied Suarez's cross-petition on the waiver issue.

IV. ARGUMENT

A. The Court of Appeals Applied a Clearly Incorrect Legal Standard

The Court of Appeals applied a plainly inapplicable statute and regulation to Suarez's WLAD claim. As presented by the parties, the issue before the Court of Appeals was whether accommodating Suarez presented an undue hardship under *Kumar v. Gate Gourmet, Inc.*, 180 Wn.2d 481, 325 P.3d 193 (2014) and the WLAD's more-than-a-de-minimis-cost standard. Suarez did not dispute that this was the correct standard; indeed, she affirmatively cited *Kumar's* more-than-a-de-minimis-cost standard. Appellant's Opening Br. at 11; CP at 205, 287, 336. The Court of Appeals, though, adopted a standard from outside the WLAD, which neither party advanced, and applied the WAC 82-56-020's definition of "undue hardship." This was error.

The regulation relied on by the Court of Appeals serves a different purpose. In addition to accommodations required by the WLAD, the Legislature authorized a more generous policy for public employees, allowing them to receive two days of unpaid religious leave each year. RCW 1.16.050(3). For the express purpose of implementing that statute, the Office of Financial Management adopted a stringent undue hardship standard, which requires a showing of "significant difficulty or expense[.]" WAC 82-56-020.

The more generous undue hardship standard in WAC 82-56-020 is not the WLAD standard. By the plain terms of RCW 1.16.050(3) and WAC 82-56-020, that standard applies only to public employees and only to two days of unpaid religious leave. The WLAD's undue hardship standard applies to *all* types of religious accommodations, regardless of employer. In addition, the Office of Financial Management regulation was not adopted by the Human Rights Commission, the agency

responsible for implementing the WLAD. *Kumar*, 180 Wn.2d at 489.

By importing WAC 82-56-020's "significant difficulty or expense" undue hardship standard into the WLAD, the Court of Appeals erroneously extended the standard to *all* employers covered by the WLAD, including private employers, and well beyond the two days of leave provided in RCW 1.16.050(3).

The Court of Appeals' flawed reasoning was not saved by *Groff*. For the reasons discussed below, *Groff* should not affect the interpretation of the WLAD. And even if it did, the *Groff* court specifically declined to adopt a "significant difficulty or expense" definition under Title VII. *Groff v. DeJoy*, 600 U.S. 447, 470-71, 143 S. Ct. 2279, 216 L. Ed. 2d 1041 (2023).

This Court should reject the Court of Appeals' adoption of WAC 82-56-020 as the WLAD's definition of "undue hardship."

B. Under the WLAD, This Court Should Adhere to the More-Than-a-De-Minimis-Cost Standard, Subject to Amendment by the Legislature or the Human Rights Commission

Existing law firmly establishes that, under the WLAD, a religious accommodation is an undue hardship (and therefore is not required) if it involves more than a de minimis cost for the employer. Under that standard, an employer must show an actual burden, whether financial or otherwise. *Kumar*, 180 Wn.2d at 502. For example, an accommodation that interferes with coworkers' seniority rights or other interests under a collective bargaining agreement can be an undue hardship. *Id.* & n.33

At the same time, this standard provides meaningful protections for religious employees. Exceptions from dress codes, minor schedule adjustments, and allowing religious expression or non-expression will generally not involve an undue hardship, especially for larger employers. And maintaining the existing standard ensures that religious accommodations do not result in harassment of coworkers or others. Any change to this

standard should come from the Legislature or the Human Rights Commission.

1. Existing authority adopts the more-than-a-de-minimis-cost standard

This Court's precedent, guidance from the Human Rights Commission, and the Washington Pattern Jury Instructions all reflect that, under the WLAD, a religious accommodation imposes an undue hardship if it involves more than a de minimis cost. This Court identified that as the correct standard in *Kumar*, 180 Wn.2d at 502.

Guidance on the Human Rights Commission website states, "[i]n religious accommodation, the employer can generally show undue hardship if the cost or impact is more than *de minimis*." App. at 3.[3] And the pattern jury instruction informs jurors that "[a]n accommodation causes an 'undue hardship' when it would have more than an insignificant effect on the business." 6A *Washington Practice: Washington Pattern Jury*

[3] This guide is available at https://www.hum.wa.gov/employment/creed-employment.

Instructions: Civil 330.42 (7th ed. April 2022 update). Suarez did not dispute this correct standard below. Appellant's Opening Br. at 11.

Under existing Washington law, the more-than-a-de-minimis-cost interpretation applies to religious accommodation claims.

2. This standard provides meaningful protections for employees

The more-than-a-de-minimis-cost standard meaningfully protects employees of faith for at least three reasons. First, establishing an undue hardship is the employer's burden. *See Kumar*, 180 Wn.2d at 502. Second, an employer must establish an actual, not speculative, burden. *See, e.g.*, *Brown v. Polk County*, 61 F.3d 650, 655 (8th Cir. 1995) (en banc). Third, whether a cost is de minimis will depend on the size of employer and the nature of its work. *See, e.g.*, *Equal Emp. Opportunity Comm'n v. Ilona of Hungary, Inc.*, 108 F.3d 1569, 1577 (7th Cir. 1997). Correctly applied, minor schedule adjustments, accommodation of religious attire or grooming, and

accommodation of religious expression or non-expression in the workplace will be required in many situations. More demanding accommodations, such as the payment of overtime wages to substitute employees, will also be required in appropriate circumstances.

Federal regulations and cases under the more-than-a-de-minimis-cost standard illustrate the protection. For example, where a "voluntary substitute" or other scheduling swap is available, there is generally no undue hardship. 29 C.F.R § 1605.2(d)(1)(i). And employees in Title VII cases can and do overcome assertions of undue hardship under that standard. *E.g.*, *Dykzeul v. Charter Comm'ns, Inc.*, No. CV 18-5826 DSF (GJSx), 2022 WL 3211003, at *3-4 (C.D. Cal. Aug. 9, 2022) (unpublished) (rejecting undue hardship defense after trial); *Enriquez v. Gemini Motor Transp. LP*, No. CV-19-04759-PHX-GMS, 2021 WL 5908208, at *12 (D. Ariz. Dec. 14, 2021) (unpublished) (denying employer's motion for summary judgment). And courts have required employers to pay overtime

as long as it is de minimis. *See Redmond v. GAF Corp.*, 574 F.2d 897, 904 (7th Cir. 1987); *Equal Emp. Opportunity Comm'n v. Sw. Bell Tel. L.P.*, No. 3:06CV00176 JLH, 2007 WL 2891379, at *4 (E.D. Ark. Oct. 3, 2007) (unpublished).

3. This standard serves the WLAD's purpose by preventing discrimination

Anti-discrimination laws should not be tools enabling harassment of coworkers, clients, or customers. But an overly broad reading of religious accommodation requirements would allow just that. For example, plaintiffs elsewhere have invoked religious accommodation laws to justify refusal to use a coworker's correct pronouns. *E.g.*, *Haskins v. Bio Blood Components*, No. 1:22-cv-586, 2023 WL 2071483, at *3 (W.D. Mich. Feb. 17, 2023); *see also Peterson v. Hewlett-Packard Co.*, 358 F.3d 599, 606-07 (9th Cir. 2004) (religious accommodation request to post anti-gay posters); *Chalmers v. Tulon Co. of Richmond*, 101 F.3d 1012, 1021 (4th Cir. 1996) (religious accommodation claim related to letters to coworkers accusing them of immoral conduct). In *Kumar*, this Court recognized that

accommodations that would "allow[] actions that demean or degrade, or are designed to demean or degrade, members of [employer's] workforce" would be an undue hardship under the more-than-a-de-minimis-cost standard. 180 Wn.2d at 502 & n.33 (quoting *Peterson*, 358 F.3d at 608).

Imposing an overly-demanding undue hardship standard would disincentivize employers from protecting employees and the public from religiously-motivated targeting or harassment by other employees. It may be difficult for employers to produce concrete evidence that such harassment actually created "'substantial additional costs' or 'substantial expenditures.'" *Groff*, 600 U.S. at 479 (quoting *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 83 n.14, 97 S. Ct. 2264, 53 L. Ed. 2d 113 (1977)). Discouraging employers from protecting employees from coworker harassment would be contrary to the WLAD's objectives.

4. Any change should come from the Legislature or the Human Rights Commission

The Legislature adopted the policies at the heart of the WLAD. In turn, the Legislature has assigned the Human Rights Commission broad authority "[t]o adopt, amend, and rescind suitable rules to carry out" the WLAD. RCW 49.60.120(3). In *Kumar*, this Court recognized the more-than-a-de-minimis-cost standard. 180 Wn.2d at 502. "The legislature and the Human Rights Commission have not changed the law or regulations to show that this rule is incorrect." *Riehl v. Foodmaker, Inc.*, 152 Wn.2d 138, 147, 94 P.3d 930 (2004), *abrogated on other grounds by Mikkelsen v. Pub. Util. Dist. No. 1 of Kittitas Cnty.*, 189 Wn.2d 516, 404 P.3d 464 (2017). In fact, the Human Rights Commission includes that standard in its published guidance. App. at 3.

Any change to the existing undue hardship standard should be adopted by the Legislature or the Human Rights Commission. Those bodies are singularly suited to the task because they can review the WLAD holistically and, unlike this

Court, are not constrained by the issues presented in a particular case. The Commission could, for example, adopt a single standard for all reasonable accommodation claims and balance changes to the plaintiff's prima facie case and the employer's "undue hardship" burden. Rejecting the Court of Appeals' new standard will allow the Legislature and Human Rights Commission to undertake a holistic review.

5. This approach protects employers' good-faith reliance on existing law

Public and private employers have acted on numerous requests for religious accommodations. This is especially true in light of the COVID-19 pandemic. The State, for example, received thousands of requests for exemptions from the requirement that employees receive the COVID-19 vaccine in order to maintain state employment. *See* https://ofm.wa.gov/sites/default/files/public/shr/COVID19/VaccinationReport_Jan122022.pdf. Other employers doubtless acted on similar requests. In determining whether accommodations were required, employers reasonably relied on the legal standards in effect at the time. If

this Court were to adopt a more stringent standard in this case, employers would presumptively be liable for decisions made in good-faith reliance on then-existing law. *Lunsford v. Saberhagen Holdings, Inc.*, 166 Wn.2d 264, 271, 208 P.3d 1092 (2009) (recognizing "the general rule that a new decision of law applies retroactively unless expressly stated otherwise in the case announcing the new rule of law").

The inherent unfairness to employers counsels in favor of adhering to the existing interpretation of the undue hardship standard while still allowing the Legislature or Human Rights Commission to adopt new standards that would apply prospectively.

6. *Groff* does not affect the WLAD

The United States Supreme Court's recent decision in *Groff* should not alter this Court's interpretation of the WLAD. *Groff* is best understood as resolving inconsistencies among the lower federal courts regarding the meaning of the more-than-a-de-minimis-cost standard announced in *Hardison*. *Groff*, 600

U.S. at 465-67. The *Groff* Court declined to overrule *Hardison* but emphasized that the standard must also be understood in a manner recognizing *Hardison's* "references to 'substantial' cost." *Id.* The existing interpretation of the WLAD, which requires consideration of the specific employer and a showing of *actual* costs or burdens is consistent with the interpretation of Title VII in *Groff*.

While certain language in *Groff* may have introduced uncertainty into Title VII, this Court need not import that uncertainty into the WLAD. In particular, *Groff's* reference to a requirement of showing "substantial increased costs" might be read to suggest—incorrectly—that only financial costs are relevant. *Id.* at 470. But *Groff* itself referred to other relevant burdens, such as impacts on seniority rights. *Id.* at 461-65 (discussing a "seniority system" as the "principal issue" in *Hardison*). Harassment of coworkers or customers can surely be an undue hardship. *Id.* at 472 (citing "coworker impacts" that

"affect the conduct of the business" as a possible source of undue hardship).

All of the above is already consistent with the existing interpretation of the WLAD. So, rather than incorporate any possible ambiguity from *Groff's* articulation—including future ambiguity that may arise as lower federal courts implement *Groff*—this Court should instead affirm the existing undue hardship standard. In Washington, that requires that employers establish actual, non-speculative burdens that are more than de minimis in the context of the employer's particular work.

C. Under Any Standard, the State Was Entitled to Summary Judgment on Suarez's WLAD Claim

1. Accommodating Suarez in her current position is an undue hardship

Suarez argues that working Friday and Saturday nights conflicts with her religious practice. Appellant's Reply Br. at 4-5. Accommodating that conflict in her current position would be an undue hardship because it would interfere with the position's essential functions. To ensure care for its patients, the

School defines its positions by the assigned days and hours. *E.g.*, CP at 159-63. "[J]ob presence or attendance may indeed be an essential job function," *Davis v. Microsoft Corp.*, 149 Wn.2d 521, 534, 70 P.3d 126 (2003).[4] Attendance for scheduled shifts is an essential function for a CNA position providing care to persons with disabilities. "[T]he WLAD does not permit" courts to tell an employer "how to organize its work force and structure individual jobs[.]" *Id.* at 536. Insofar as Suarez contends the School was required to change her position's schedule, that would involve an undue hardship by fundamentally altering the position.

Accommodating Suarez's seven annual religious feasts in her current position does not categorically involve an undue

[4] *Davis* involved an employee's prima facie burden in a disability accommodation claim to show an ability to complete the essential functions of the position. 149 Wn.2d at 532. While a plaintiff in a religious accommodation claim does not have this prima facie burden, if an employer carries the burden of showing interference with an essential function, that should establish an undue hardship.

hardship. In fact, the School accommodated Suarez's requests for religious leave when she provided reasonable notice and the leave did not conflict with other employees' CBA or seniority rights. CP at 55, 134, 171, 225-28, 247.

Allowing Suarez to skip work without reasonable notice, despite the School being short-staffed, however, *is* an undue hardship. It resulted in the School being forced to compel another employee to work mandatory overtime with little notice. CP at 231. Suarez could have requested paid leave earlier in the year, CP at 319, submitted a request for unpaid leave with reasonable notice, CP at 320, or arranged a voluntary shift exchange, CBA at 26. Those reasonable accommodations are built into the School's CBA. But Suarez was not entitled to request unpaid leave on one day's notice and then, despite knowing the request was denied and the School was short-staffed, skip work. Particularly because this resulted in another employee being forced to work mandatory overtime, this created an undue hardship.

To the extent Suarez claims that she was treated differently than other staff members, that is a disparate treatment theory, which she waived. *Suarez*, 23 Wn. App. 2d at 619. And the fact that other staff members called out undermines her reasonable accommodation claim. The School recognizes that unexpected absences (such as due to illness) will occur. Some "cushion" in scheduling is therefore necessary. This is why the School limits planned absences that would interfere with the needed cushion.

2. Giving Suarez a different position in violation of the CBA is an undue hardship

Changing Suarez's position to one with Saturdays off would be an undue hardship because it would remove another employee from their existing position or deprive more senior employees of an opportunity to bid on an open position. This would be an undue hardship under any standard, as the Court of Appeals recognized. *Suarez*, 23 Wn. App. 2d at 628.

The violation of other employees' seniority rights is an undue hardship. *Hardison*, 432 U.S. at 80-81; *see also Groff*, 600 U.S. at 464-65 (emphasizing "seniority rights" at issue in

Hardison); 29 C.F.R. § 1605.2(e)(2); App. at 3 ("An employer can claim that changing a work schedule would result in an undue hardship . . . if there is an actual negative impact on other employees, or if the change would a create a violation of a collective bargaining agreement."). This is true even in the context of the federal Americans with Disabilities Act, where an undue hardship is defined as "an action requiring significant difficulty or expense," 42 U.S.C. § 12111(10). *US Airways, Inc. v. Barnett*, 535 U.S. 391, 403, 122 S. Ct. 1516, 152 L. Ed. 2d 589 (2002).

Suarez's argument regarding the swing shift position that became available in September 2019 does not change this analysis. It is undisputed that an email about that position was sent to every employee, including Suarez. CP at 357. It is also undisputed that Suarez did not apply for that position. *Id.* Suarez had told her supervisor that she was not interested in a swing shift position, and she would have had to start her 12-month probation over again. CP at 241, 357. It would have been inappropriate for

the School to unilaterally change Suarez's schedule in these circumstances. Instead, the School selected a different employee who, unlike Suarez, chose to apply for the position.

The Court of Appeals' observation that advising Suarez to apply for the open position "would not be an undue hardship," *Suarez*, 23 Wn. App. 2d at 629, misses the mark. Advising Suarez to apply was not a reasonable accommodation—it would not "resolve[ ] the conflict between an employee's religious beliefs and their work duty[.]" *Id.* at 613. So it doesn't matter whether it would have been an undue hardship. While Suarez claims her supervisor should have personally informed her of the opening, *see* CP at 246, this ignores that Suarez had previously told her supervisor that she was not interested in a swing shift position. CP at 357.

D. The Same Undue Hardship Standard Applies to Wrongful Discharge Claims

The Court of Appeals' reversal of summary judgment on Suarez's wrongful discharge claim was based on its erroneous interpretation of the undue hardship requirement. Under the

correct standard, the trial court correctly granted summary judgment in favor of the School.

In a wrongful discharge case, a plaintiff must establish that the "'discharge may have been motivated by reasons that contravene a clear mandate of public policy'" and "that the public-policy-linked conduct was a 'significant factor' in the decision to discharge the worker." *Martin v. Gonzaga Univ.*, 191 Wn.2d 712, 725, 425 P.3d 837 (2018) (quoting *Thompson v. St. Regis Paper Co.*, 102 Wn.2d 219, 232, 685 P.2d 1081 (1984) and citing *Wilmot v. Kaiser Aluminum & Chem. Corp.*, 118 Wn.2d 46, 75, 821 P.3d 18 (1991)). If the employee does so, the employer then has the burden of articulating "'a legitimate nonpretextual nonretaliatory reason for the discharge.'" *Id.* at 725-26 (quoting *Wilmot*, 118 Wn.2d at 70).

In this case, Suarez's WLAD and wrongful discharge claims effectively merge. The public policy underlying her wrongful discharge claim is the WLAD's requirement that employers provide "reasonable accommodations that do not

create an undue hardship." *Suarez*, 23 Wn. App. 2d at 633-34. Suarez's proposed accommodations would have been undue hardships for the School. *Supra* at 25-30. As a result, she cannot establish a prima face wrongful discharge claim because she cannot show a violation of the WLAD, the relevant public policy.

The Court of Appeals' decision with respect to wrongful discharge was a direct result of its misinterpretation of the WLAD's undue hardship standard. *Suarez*, 23 Wn. App. 2d at 634-35. Moreover, any suggestion that Suarez was terminated based on her religion—as opposed to her decision to leave the School short-staffed—is rebutted by the fact that the School had recently approved four additional days of religious leave, in addition to the full week of religious leave previously authorized. CP at 171, 225.

V. CONCLUSION

This Court should reverse the Court of Appeals and reinstate the superior court's summary judgment order.

This document contains 4,998 words, excluding the parts of the document exempted from the word count by RAP 18.17.

RESPECTFULLY SUBMITTED this 19th day of September, 2023.

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CERTIFICATE OF SERVICE

I certify, under penalty of perjury under the laws of the State of Washington, that the foregoing was electronically filed in the Washington State Supreme Court and electronically served on all parties of record, according to the Court's protocols for electronic filing and service.

DATED this 19th day of September 2023, at Olympia, Washington.

s/ Leena Vanderwood
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Paralegal

APPENDIX

WASHINGTON STATE HUMAN RIGHTS COMMISSION

GUIDE TO RELIGION and WASHINGTON STATE NONDISCRIMINATION LAWS

OLYMPIA HEADQUARTERS OFFICE
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Religion and Non-Discrimination

RCW 49.60 and Title VII of the Civil Rights Act of 1964 prohibit discrimination in employment based on religion or creed.

Although the language of the Washington Law Against Discrimination exempts religious organizations from non-discrimination laws in the area of employment, the Supreme Court of Washington determined that this provision violated the Washington Constitution in some instances. In *Ockletree v. Franciscan Health System*, 179 Wn.2d. 769 (2014), a plurality determined that sometimes, discrimination allegations against religious employers may be jurisdictional under RCW 49.60. If the reason for the adverse employment action was unrelated to religious practice or belief, then the case would fall under RCW 49.60 (for example, if the person was terminated because they were injured and could no longer do the job). Also, if the position in question does not have any connection to the practice or teaching of religion (such as a janitor or a physician), then the case would fall under RCW 49.60.

Religion or Creed

A religion or creed is defined broadly and includes observance, pratice, and belief. A creed or religious belief includes those sincere and meaningful beliefs that occupy in the life of that individual a place parallel to that of God in a traditional religion. The beliefs can include sincerely held moral and ethical beliefs as to what is right and wrong, and beliefs that address ultimate ideas, or questions about life, purpose, and death. For example Wiccan is a belief that is religious in nature because the belief relates to "ultimate" issues and a moral concern about improving the quality of life for others. However, membership in the Ku Klux Klan is not a religion and is instead considered an ideology.

- A person does not have to be part of an organization or church to have a creed or religion.
- Someone from a particular religion may adhere to different practices and beliefs than someone else in the same religion.
- Someone who was not religious at one point, may become religious.
- Employers may request some type of information to ensure that the employee is sincere, such as further information from the employee or a letter from a religious leader; however, it is often difficult, from a legal standpoint, to challenge a person's sincerity.

Reasonable Accommodation

In *Kumar v. Gate Gourmet, Inc.*, 180 Wn.2d 481 (2014), the Washington State Supreme Court determined that the Washington Law Against Discrimination requires employers to reasonably accommodate their employees' religious practices.

In order to receive a reasonable accommodation from an employer, the employee must hold a religious belief and put the employer on notice that the religious belief conflicts with a workplace rule. Once that occurs, the employer and employee must enter into an interactive process to find a reasonable accommodation. The employer does not need to choose the employee's preferred accommodation, only one that works.

There are **two general types of reasonable accommodation**:

1. An **exemption from a work rule** or grooming standard.
   - Examples: An exemption from wearing a uniform or an exemption from a "no-beards" policy for a person who wears religious headwear, clothing, or icons, or has a beard for religious reasons.

   - An employer does not have to make an exemption from the work rule if the rule is safety based or if the rule is a legal requirement. Examples of such rules could be a requirement that employees must wear hard hats at a construction site, or a prohibition of loose-fitting clothing that could get caught in machinery in a machine shop. These safety issues must be legitimate, and not hypothetical.

   - Company image and customer preferences are never valid reasons to deny an exemption from a work rule. Company image, however, should be distinguished from the essential nature of the business. As an example, a company that markets hair care products would require its models to show their hair. A person whose religion requires that their hair be covered could not be a model for the hair care products.

2. **Work schedule change** to accommodate attendance at worship or services or to eliminate a safety issue.
   - The employer can alter the person's schedule, transfer the person to a different position, or change the person's shift in order to accommodate a religious belief and practice.

An employer does not have to reasonably accommodate a religious belief if there is an **undue hardship**.

- An employer can claim that changing a work schedule would result in an undue hardship if there is an actual cost to making the change, if there is an actual negative impact on other employees, or if the change would create a violation of a collective bargaining agreement.

- The employer's burden of showing an undue hardship in religious accommodation situations is less than that of showing an undue hardship in disability accommodation situations. In religious accommodation, the employer can generally show undue hardship if the cost or impact is more than *de minimis*.

An example of an undue hardship might be found in a production setting with timelines or quotas for finishing an order. An employer may not have to accommodate an orthodox Muslim employee who must stop work to pray five times a day, if the time spent in prayer has an impact on production.

Employers should be aware that after the 9/11 terrorist attacks, government enforcement agencies are committed to preventing backlash against Muslims, Arabs, Sikhs, and others who may be thought to be associated with terrorists. In light of this, employers should consider relaxing their uniform and grooming standards, unless there are legitimate safety issues. Certainly, employers should avoid implementing rules that are more restrictive on religious practices because of terrorism fears.

Example: Prior to 9/11/2001, Muslim female employees were allowed by their employer to leave their shirts untucked, as it was a violation of their religious beliefs to tuck their shirts in as it would reveal their female shape. After the 9/11 terrorist attacks, the company revoked this accommodation. The company argued that it was a safety issue. A U.S. District Court determined that safety was not the primary factor behind the new policy, and struck down the enforcement of the policy.

Sometimes, a workplace situation may present conflicting interests. For example, a Muslim dentist may claim that he cannot be in the same room as a dog due to his religious beliefs. One of his patients is disabled, and must have a service animal with her during the dental visit. The dental clinic, as a place of public accommodation, must allow the service animal to enter. The clinic must also explore the religious accommodation issues, and determine how the dentist might be accommodated in the situation.

Discrimination

An employer cannot subject employees or applicants to different treatment due to their religious beliefs. Examples of different treatment include, but are not limited to, refusing to hire an applicant, refusing to promote an employee, giving an employee the hardest jobs or worst shifts, holding an employee to different rules or different performance standards, or withholding benefits from an employee.

Harassing a person because of that person's religion or creed is prohibited conduct. This type of harassment should be covered in an employer's harassment and non-discrimination policies, and should be subject to an internal complaint and investigation procedure. An employer has the duty to take prompt and remedial action if an employee complains of religious discrimination. The employer is obligated to conduct an objective and prompt investigation, with appropriate remediation or discipline if discrimination is found. However, the employer is not obligated to impose the discipline that the complaining employee wants.

Likewise, an employer or manager who holds religious beliefs cannot treat an employee differently or poorly because that employee does not share their religious beliefs, and cannot make any employment decision based on the fact that the employee does not share

their religious beliefs. The same principle applies to the treatment of employees who are not religious. For example, a company owned by Mormons cannot only hire or promote Mormons; the company must provide equal opportunity to people who are of other religions and to people who do not practice a religion.

Employee Behavior

Employees can express their religion at work by wearing personal ornaments, placing modest decorations in their workstations, or by having a Bible study during an unpaid lunch period. Employers can place restrictions on decorations at employee workstations if the workststation is in public or customer view, particularly if the employee works for a government agency. Religious ornamentation at a government agency may run afoul of the First Amendment's Establishment Clause. Employers should prohibit religious group study during work hours. Employers may prohibit private religious study during non-break work hours, as long as a the rule is equally applied to similar non-religious behavior (i.e. to studying textbooks and to reading novels or magazines).

A manager or supervisor who decides to hold a religious study for co-workers during an unpaid lunch or outside of work hours must exercise extreme caution. Attendance must be and appear to be completely voluntary - it must never appear that employees are forced or pressured to attend. Attendance at the religious study must never be a prerequisite for any workplace perks or employment decisions. The manager or supervisor must use care to treat all employees the same in all aspects of employment, and to show no favoritism, even social favoritism, to employees who attend the religious study. Employers should be aware of the risk of this type of religious study; if an employee who chooses not to attend the study is then faced with an adverse employment action, there is the potential that the employee will make a claim of religious discrimination.

An employee cannot be rude or disruptive in the exercise of his or her religion, and the employer can prohibit such behavior as long as the same conduct rules are applied to everyone equally in non-religious situations.

In addition, an employee exercising his or her religion should not act adversely toward certain kinds of people, or refuse to cooperate in employer programs. For exmple, when an employer began displaying "diversity posters" which were inclusive of homosexuals, an employee responded by posting Biblical scriptures large enough to be visible to other employees. When the employee posted a passage condemning homosexuality, the employee's supervisors determined that it could be offensive and that it violated the employer's policy prohibiting harassment. The employee was fired for insubordination when he refused to remove the scriptures. The court held that it would create an undue hardship for the employer to accommodate the employee by allowing him to post messages intended harass his co-workers, or to exclude homosexuals from its diversity program. The court upheld the employee's termination, stating that the employee was not fired for his religious beliefs, but for insubordination and violation of the workplace harassment policy.

If you need additional information, have additional questions, or wish to have training for your organization, please contact the WSHRC at 360-753-6770 or 800-233-3247 (TTY 800-300-7525). Additional information on this and other civil rights issues can be found on our website at www.hum.wa.gov. This document does not constitute legal advice; if you have a particular situation about which you need legal advice, you should contact your attorney.

Following is information, including several scenarios, pertaining particularly to Muslims, Arabs, South Asians, and Sikhs. This information is courtesy of the U.S. Equal Employment Opportunity Commission.

QUESTIONS AND ANSWERS ABOUT EMPLOYER RESPONSIBILITIES CONCERNING THE EMPLOYMENT OF MUSLIMS, ARABS, SOUTH ASIANS, AND SIKHS

Since the attacks of September 11, 2001, the Equal Employment Opportunity Commission (EEOC) and state and local fair employment practices agencies have recorded a significant increase in the number of charges alleging discrimination based on religion and/or national origin. Many of the charges have been filed by individuals who are or are perceived to be Muslim, Arab, South Asian, or Sikh. These charges most commonly allege harassment and discharge.

While employers have an ongoing responsibility to address workplace discrimination, reaction to the events of September 11, 2001 may demand increased efforts to prevent discrimination. This fact sheet answers questions about what steps an employer can take to meet these responsibilities. The Commission has also prepared a companion fact sheet that answers questions about employee rights. For additional information, visit the EEOC's website at http://www.eeoc.gov.

INTRODUCTION

Title VII of the Civil Rights Act of 1964 prohibits workplace discrimination based on religion, ethnicity, country of origin, race and color. Such discrimination is prohibited in any aspect of employment, including recruitment, hiring, promotion, benefits, training, job duties, and termination. Workplace harassment is also prohibited by Title VII. In addition, an employer must provide a reasonable accommodation for religious practices unless doing so would result in undue hardship. The law prohibits retaliation against an individual because s/he has engaged in protected activity, which includes filing a charge, testifying, assisting, or participating in any manner in an investigation, or opposing a discriminatory practice. Employers with 15 or more employees are required to comply with Title VII. Title VII also prohibits discrimination by most unions and employment agencies.

HIRING AND OTHER EMPLOYMENT DECISIONS

Narinder, a South Asian man who wears a Sikh turban, applies for a position as a cashier at XYZ Discount Goods. XYZ fears Narinder's religious attire will make customers uncomfortable. What should XYZ do?

XYZ should not deny Narinder the job due to notions of customer preferences about religious attire. That would be unlawful. It would be the same as refusing to hire Narinder because he is a Sikh.

XYZ Discount Goods should also consider proactive measures for preventing discrimination in hiring and other employment decisions. XYZ could remind its managers and employees that discrimination based on religion or national origin is not tolerated by the company in any aspect of employment, including hiring. XYZ could also adopt objective standards for selecting new employees. It is important to hire people based on their qualifications rather than on perceptions about their religion, race or national origin.

HARASSMENT

Muhammad, who is Arab American, works for XYZ Motors, a large used car business. Muhammad meets with his manager and complains that Bill, one of his coworkers, regularly calls him names like "camel jockey," "the local terrorist," and "the ayatollah," and has intentionally embarrassed him in front of customers by claiming that he is incompetent. How should the supervisor respond?

Managers and supervisors who learn about objectionable workplace conduct based on religion or national origin are responsible for taking steps to correct the conduct by anyone under their control. Muhammad's manager should relay Muhammad's complaint to the appropriate manager if he does not supervise Bill. If XYZ Motors then determines that Bill has harassed Muhammad, it should take disciplinary action against Bill that is significant enough to ensure that the harassment does not continue.

Workplace harassment and its costs are often preventable. Clear and effective policies prohibiting ethnic and religious slurs, and related offensive conduct, are needed. Confidential complaint mechanisms for promptly reporting harassment are critical, and these policies should be written to encourage victims and witnesses to come forward. When harassment is reported, the focus should be on action to end the harassment and correct its effects on the complaining employee.

RELIGIOUS ACCOMMODATION

Three of the 10 Muslim employees in XYZ's 30-person template design division approach their supervisor and ask that they be allowed to use a conference room in an adjacent building for prayer. Until making the request, those employees prayed at their work stations. What should XYZ do?

XYZ should work closely with the employees to find an appropriate accommodation that meets their religious needs without causing an undue hardship for XYZ. Whether a reasonable accommodation would impose undue hardship and therefore not be required depends on the particulars of the business and the requested accommodation.

When the room is needed for business purposes, XYZ can deny its use for personal religious purposes. However, allowing the employees to use the conference room for prayers likely would not impose an undue hardship on XYZ in many other circumstances.

Similarly, prayer often can be performed during breaks, so that providing sufficient time during work hours for prayer would not result in an undue hardship. If going to another building for prayer takes longer than the allotted break periods, the employees still can be accommodated if the nature of the template design division's work makes flexible scheduling feasible. XYZ can require employees to make up any work time missed for religious observance.

In evaluating undue hardship, XYZ should consider only whether it can accommodate the three employees who made the request. If XYZ can accommodate three employees, it should do so. Because individual religious practices vary among members of the same religion, XYZ should not deny the requested accommodation based on speculation that the other Muslim employees may seek the same accommodation. If other employees subsequently request the same accommodation and granting it to all of the requesters would cause undue hardship, XYZ can make an appropriate adjustment at that time. For example, if accommodating five employees would not cause an undue hardship but accommodating six would impose such hardship, the sixth request could be denied.

Like employees of other religions, Muslim employees may need accommodations such as time off for religious holidays or exceptions to dress and grooming codes.

TEMPORARY ASSIGNMENTS

Susan is an experienced clerical worker who wears a hijab (head scarf) in conformance with her Muslim beliefs. XYZ Temps places Susan in a long-term assignment with one of its clients. The client contacts XYZ and requests that it notify Susan that she must remove her hijab while working at the front desk, or that XYZ assign another person to Susan's position. According to the client, Susan's religious attire violates its dress code and presents the "wrong image." Should XYZ comply with its client's request?

XYZ Temps may not comply with this client request without violating Title VII. The client would also violate Title VII if it made Susan remove her hijab or changed her duties to keep her out of public view. Therefore, XYZ should strongly advise against this course of action. Notions about customer preference real or perceived do not establish undue hardship, so the client should make an exception to its dress code to let Susan wear her hijab during front desk duty as a religious accommodation. If the client does not withdraw the request, XYZ should place Susan in another assignment at the same rate of pay and decline to assign another worker to the client.

BACKGROUND INVESTIGATIONS

Anwar, who was born in Egypt, applies for a position as a security guard with XYZ Corp., which contracts to provide security services at government office buildings. Can XYZ require Muhammad to undergo a background investigation before he is hired?

XYZ may require Anwar to undergo the same pre-employment security checks that apply to other applicants for the same position. As with its other employment practices, XYZ may not perform background investigations or other screening procedures in a discriminatory manner.

In addition, XYZ may require a security clearance pursuant to a federal statute or Executive Order. Security clearance determinations for positions subject to national security requirements under a federal statute or an Executive Order are not subject to review under the equal employment opportunity statutes.

WHERE TO GO FOR GUIDANCE

The EEOC is available to provide you with useful information on how to address workplace problems relating to discrimination based on religion, national origin, race or color. We conduct various types of training, and we can help you find a format that is right for you.

Small businesses are faced with unique challenges in promoting effective workplace policies that prevent discrimination. Our Small Business Liaisons are located in each of our District, Local and Area offices to assist you in compliance with EEO laws.

You should feel free to contact EEOC with questions about effective workplace policies that can help prevent discrimination. We are also available to answer more specialized questions. Please call 1-800-669-4000 (TTY 1-800-669-6820), or send inquiries to:

Equal Employment Opportunity Commission
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Washington, D.C. 20507

UNPUBLISHED OPINIONS

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United States District Court, C.D. California.

Teresa DYKZEUL, Plaintiff,
v.
CHARTER COMMUNICATIONS, INC., Defendant.

CV 18-5826 DSF (GJSx)
|
Signed August 09, 2022

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Findings of Fact and Conclusions of Law After Court Trial

Dale S. Fischer, United States District Judge

***1** This matter was tried to the Court on July 20, 2021. Having heard and reviewed the evidence and having considered the parties' post-trial submissions, and having observed the credibility of the witnesses, the Court makes the following findings of fact and conclusions of law.

I. FINDINGS OF FACT [1]

A. The Parties

1. Defendant Charter Communications, Inc. provides cable television, internet, and television services. See Stipulated Facts ¶ 2 (SF), dkt. 137.

2. During the relevant time period, Charter provided these services in Gilroy, Turlock, and San Luis Obispo, California. See id. ¶ 6.

3. One of the ways Charter sold these services to customers was through door-to-door Direct Sales Representatives (DSRs). Id. ¶ 2.

4. Plaintiff Teresa Dykzeul was at all relevant times a follower of the Messianic Christian faith. Dykzeul Decl. ¶ 3, dkt. 142.

5. As part of her sincerely held religious beliefs, Dykzeul observes the Sabbath and cannot work during it, or from Friday at sundown to Saturday at sundown. Id. ¶¶ 2–4; SF ¶¶ 10–11.

B. Plaintiff's DSR Employment Application

6. Dykzeul applied to be a DSR with Charter in October 2015. Id. ¶ 1. The application asked if she was able to work evenings and weekends, and she indicated she could. Id. ¶ 3.

7. On October 15, 2015, Dykzeul interviewed for the DSR position with Jim Swift. SF ¶ 5. Swift was a Direct Sales Supervisor for Charter over Gilroy, Turlock, and San Luis Obispo. Id. ¶ 6.

8. During the October 15 interview, Swift told Dykzeul that the availability to work Saturdays was a requirement for the DSR position. SF ¶ 7.

9. Dykzeul then told Swift she could not work Friday nights and Saturday mornings and afternoons due to her observance of the Sabbath. Swift understood that this was because of her religion. SF ¶¶ 10–11.

10. After being told that DSRs were required to work on Saturdays, Dykzeul offered to work on Sundays instead. SF ¶ 12.

11. Swift wanted to hire Dykzeul because he thought she had potential but concluded she could not work Sundays instead of Saturdays because then he would have to work seven days a week. SF ¶¶ 13–14. Swift therefore chose not to hire Dykzeul for a DSR position with Charter. Id. ¶¶ 15–16.

12. The only reason Swift did not hire Dykzeul was that she could not work on Saturdays. SF ¶ 17.

II. CONCLUSIONS OF LAW

Plaintiff's Claims

13. Dykzeul brings four separate claims for religious or intentional discrimination and failure to accommodate religious beliefs, two under federal law (Title VII), and two

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under California law (Fair Employment and Housing Act (FEHA)).

14. Charter argues that Dykzeul's claims under Title VII for intentional discrimination and failure to accommodate are simply different theories supporting a single claim under Title VII for disparate impact. But even assuming Charter is correct, it has not identified any meaningful change that could occur as a result of the decision it requests. The Court is also not aware of any significance the decision would have to either party, the relief available to Dykzeul under Title VII, or the element of any claim or defense in this case, particularly because FEHA already required Dykzeul to bring two separate claims. The Court therefore declines to issue the requested advisory opinion.

Failure to Accommodate

***2** 15. For Dykzeul's claim under Title VII for disparate treatment for failure to accommodate her religious beliefs the elements are:

a. The employee had a bona fide religious belief, the practice of which conflicts with an employment duty;

b. She informed her employer of the belief and conflict; and

c. The employer discharged, threatened, or otherwise subjected her to an adverse employment action because of her inability to fulfill the job requirement.

Heller v. EBB Auto. Co., 8 F.3d 1433, 1438 (9th Cir. 1993).

16. For Dykzeul's claim under FEHA for failure to accommodate her religious beliefs, Gov. Code § 12940(l) (PTC at 7), the elements are:

a. That Charter was an employer;

b. That Dykzeul applied to Charter for a job;

c. That Dykzeul had a sincerely held religious belief that required her to observe the Sabbath from sundown Friday to sundown Saturday;

d. That Dykzeul's religious observance of the Sabbath conflicted with a job requirement;

e. That Charter knew of the conflict between Dykzeul's religious observance and the job requirement;

f. That Charter did not reasonably accommodate Dykzeul's religious observance;

g. That Dykzeul's inability to comply with the conflicting job requirement was a substantial motivating reason for Charter's decision not to hire her;

h. That Dykzeul was harmed; and

i. That Charter's failure to reasonably accommodate Dykzeul's religious observance was a substantial factor in causing her harm.

17. Dykzeul has established each of the elements of her claims against Charter for failure to accommodate her religious beliefs under FEHA and Title VII.

Intentional Discrimination Under FEHA

18. For Dykzeul's claim for intentional discrimination under FEHA, the only disputed element is whether Dykzeul's religious practice/observance was a substantial motivating reason in Charter's decision not to hire her.

19. Under FEHA, religion is broadly defined and includes "all aspects of religious belief, observance, and practice." Gov't Code § 12926(q). Sabbath is a religious observance or practice within the meaning of FEHA.

20. Charter repeatedly argues that it cannot have intentionally discriminated against Dykzeul because there is no evidence of discriminatory animus, hostility, or intent because the parties have stipulated that the only reason she was not hired was that she could not work on Saturdays. Def. Tr. Br. at 36 (citing SF ¶ 17). Charter is incorrect.

21. Religious discrimination under FEHA does not require discriminatory animus or hostility. California Fair Employment & Housing Comm'n v. Gemini Aluminum Corp., 122 Cal. App. 4th 1004, 1011 (2004) (stating that the elements of a prima facie case for religious creed discrimination are "the employee sincerely held a religious belief; the employer was aware of that belief; and the belief conflicted with an employment requirement.")

22. Charter has stipulated to facts sufficient to establish it committed intentional religious discrimination in violation of FEHA, and that the sole reason it did not hire Dykzeul

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was religion as it is defined in FEHA. See Gov't Code § 12926(q). Those stipulated facts are: Swift was the only person who made Charter's decision not to hire her; Swift knew she could not work on Saturdays because of her observance of Sabbath that was a part of her religion; and the only reason Swift did not hire her was that she could not work on Saturdays. SF ¶¶ 10-11, 15-17.

Defendant's Defenses

***3** 23. Charter has asserted defenses under both Title VII and FEHA for undue hardship and Plaintiff's failure to mitigate her damages. [2] Charter must prove each of its defenses by a preponderance of the evidence.

24. Plaintiff proposed the following accommodations that Charter could adopt to avoid discriminating against her because she observed Sabbath. These proposed accommodations are relevant to Plaintiff's claim for failure to accommodate, as well as Defendant's undue hardship defense.

a. Excusing her from working Saturdays altogether and adjusting her performance goals according to a reduced schedule;

b. Allowing her to work longer hours on weekdays;

c. Allowing her to use vacation time or sick leave for her missed Saturdays; and

d. Using or hiring another DSR to cover her assigned leads on Saturdays.

Undue Hardship

25. To establish an undue hardship defense under Title VII:

a. Charter must establish that all of Plaintiff's proposed accommodations would cause undue hardship;

b. "[A]n accommodation causes 'undue hardship' whenever that accommodation results in 'more than a de minimis cost' to the employer." Ansonia Bd. of Educ. v. Philbrook, 479 U.S. 60, 67 (1986) (quoting Trans World Airlines, Inc. v. Hardison, 432 U.S. 63, 84 (1977)). "[A]dditional costs in the form of lost efficiency or higher wages may constitute undue hardships," as will accommodations that impose a "significant discriminatory impact on the plaintiff's coworkers." Opuku-Boateng v. State of Cal., 95 F.3d 1461, 1468 n.11, 12 (9th Cir. 1996).

c. However, the Ninth Circuit is skeptical of " 'hypothetical hardships' based on assumptions about accommodations which have never been put into practice." Anderson v. General Dynamics Convair Aerospace Div., 589 F.2d 397, 402 (9th Cir. 1978).

26. To establish an undue hardship defense under FEHA, Cal. Gov't Code § 12926(u) requires Charter to show the possible accommodations were difficult or expensive, in light of:

a. The nature and cost of the accommodation;

b. Charter's ability to pay for the accommodation;

c. The type of operations conducted at the facility;

d. The impact on the operations of the facility;

e. The number of Charter's employees and the relationship of the employees' duties to one another;

f. The number, type, and location of Charter's facilities; and

g. The administrative and financial relationship of the facilities to one another.

27. Charter has failed to establish by a preponderance of the evidence that it would have been an undue hardship to accommodate Dykzeul's observance of Sabbath under either Title VII or FEHA.

28. There was no meaningful requirement for DSRs to work Saturdays. In October 2015, Swift knew he had no way of enforcing his requirement to work on Saturdays. He could not discipline a DSR, issue corrective action, or count it towards their vacation if a DSR did not work on Saturdays. Trial Tr. July 20 at 163. The tracking software Charter used did not display which day of the week sales were made and did not count weekends as sales days. Day 1 Tr. 165–68. Working on Saturdays is best viewed as a buffer day to be able to help meet sales targets in the event of cancellations, but unimportant if the DSR is otherwise meeting targets. Id. at 167, 169. The testimony from multiple DSRs shows that Saturdays were not a regular part of the work week. Krystyna Amaral testified that Swift told her working on Saturdays was encouraged but it was not anywhere in company policy. Trial Tr. July 20 at 99

(Amaral). Daniel Blond also testified that Swift told him that working Saturdays had never actually been a requirement. Id. at 62 (Blond). Swift also knew any requirement to work on Saturdays was unenforceable when he decided not to hire Dykzeul. Trial Tr. July 20 at 175–76 (Swift). Indeed, there was a paucity of contemporaneous evidence that actually showed the existence and application of this alleged policy that had supposedly been in place for many years.

***4** 29. Swift never meaningfully considered any alternatives besides having Dykzeul work additional hours on Sunday. He never contacted supervisors in other regions or his own supervisors, or reviewed Charter's policies, procedures, or any other document. Trial Tr. July 20 at 80. Swift explained that he would have had to work every Sunday if he hired Dykzeul and allowed her to work on Sundays instead of Saturdays, but this was an assumption on his part and one the Court does not find credibly establishes any undue hardship. Swift never attempted to discuss the matter with anyone else including his superiors, verify this assumption was accurate, or evaluate the feasibility of any alternative practices that would not require him to be on call every Sunday.

Mitigation of Damages

30. In order for Charter to establish a defense under FEHA that Dykzeul failed to mitigate her damages, Charter must show:

a. That employment substantially similar to the job Dykzeul applied for was available to her;

b. That Dykzeul failed to make reasonable efforts to seek and retain this employment; and

c. The amount Dykzeul could have earned from this employment.

31. In order for Charter to establish a defense under Title VII that Dykzeul failed to mitigate her damages, Charter must show that Dykzeul failed to exercise "reasonable diligence" as required by statute. 42 U.S.C. § 2000e–5(g)(1).

32. Dykzeul made reasonable efforts to obtain employment after her application for employment with Charter. SF ¶ 19. The only dispute between the parties on this defense is whether Dykzeul breached her obligation to make reasonable efforts to *maintain* similar employment (thus reducing the amount of back pay owed) due to the nature of her separation from Patient Care America in April 2018. Given the Court's finding below that Dykzeul is entitled to only six months of backpay, the application of this defense is moot.

Damages

33. In actions for harassment under FEHA, "the plaintiff may recover those damages generally available in noncontractual actions." State Dep't of Health Servs. v. Superior Ct., 31 Cal. 4th 1026, 1042 (2003) (quotation marks omitted). Specifically, a court "may award unlimited compensatory and punitive damages." Murillo v. Rite Stuff Foods, Inc., 65 Cal. App. 4th 833, 842 (1998). A plaintiff may be awarded compensatory damages for emotional distress brought on by an employer's FEHA violations. See Taylor v. Trees, Inc., 58 F. Supp. 3d 1092, 1103 (E.D. Cal. 2014) (citing Peralta Cmty. Coll. Dist. v. Fair Emp. & Hous. Comm'n, 52 Cal. 3d 40, 48 (1990)). "Emotional distress [refers to] the full gamut of intangible mental suffering, including not only physical pain, but also fright, nervousness, grief, anxiety, worry, mortification, shock, humiliation, indignity, embarrassment, apprehension, terror or ordeal." Peralta, 52 Cal. 3d at 48 n.4. To recover compensatory damages for emotional distress, "there is no requirement that the 'emotional distress' be severe." Taylor, 58 F. Supp. 3d at 1103.

Back-Pay

34. Congress's purposes in enacting Title VII were to eradicate discriminatory employment practices and "to make persons whole for injuries suffered on account of unlawful employment discrimination." Albemarle Paper Co. v. Moody, 422 U.S. 405, 415, 418 (1975). Congress vested the courts with wide discretion so they could provide 'make whole' or 'complete' relief, including back pay. Id. at 420–21. Given the purposes of Title VII, the Supreme Court has explained that once there has been a finding of unlawful discrimination backpay should be denied only for reasons that would not "frustrate the central statutory purposes of eradicating discrimination throughout the economy and making persons whole for injuries suffered through past discrimination." Id. at 420. The parties do not dispute that if Charter violated Title VII, Dykzeul is owed backpay – only the amount is disputed.

***5** 35. The variables needed to calculate the amount of backpay Charter owes Dykzeul are: (1) the appropriate rate of

pay, (2) the length of time she is entitled to receive backpay, (3) and by how much that amount must be reduced or offset by the amounts Dykzeul actually earned during the period of backpay as required by Title VII and FEHA.

36. At trial the parties presented their back pay calculations through experts. Much of the expert testimony simply regurgitated the positions and assumptions of the parties and was not helpful to the Court. The actual data and their discussions on DSR salaries and length of employment, however, was more helpful to the Court both in making its calculations as well as understanding the nature of the position.

a. Dykzeul's expert on backpay and damages was Wesley L. Nutten. Dkt. 141. He provided three different calculations of the backpay owed based on different models for DSR income. The first model assumed the highest DSR incomes and was based on salaries Charter advertised in its descriptions and other promotions for the job. It assumed Dykzeul's initial salary would be $100,000 and she would be very successful in the job so it would only go up from there, ending in $425,530.72 of owed backpay. Nutten's second model starts her salary at $75,000 and assumes she is a little less successful, concluding that she would ultimately be owed only $258,062.29 in backpay. His third model, based on data provided by Charter that he felt was heavily flawed, has her salary starting at $57,349 and Dykzeul finally being owed $145,914.64 in backpay.

b. Charter's expert on backpay and damages was Amy M. Aukstikalnis. Dkts. 145, 173. She estimated Dykzeul's salary based on the twenty-nine salaries of the DSRs who worked in Turlock between October 2015 and October 2018, and who she calculated had an average salary over that period of $35,577. She noted their median salary was $31,768 over the three years, and only one DSR at the time averaged more than $75,000. She also testified that DSRs had incredibly high turnover, and that 73.3% of them during that period left the job within nine months. Dkt. 145 ¶ 18.

Rate of Pay

37. The appropriate figure for computing backpay owed to Dykzeul must be based on the actual amount DSRs were earning at the time Dykzeul would have been working there. Plaintiff argues that Charter should be held to advertisements representing higher average salaries, but those representations have no nexus with the past discrimination Dykzeul faced and would be a windfall with no relation to providing "complete justice" for the effects of past or future discrimination. Clemens v. Centurylink Inc., 874 F.3d 1113, 1116 (9th Cir. 2017) (quotation and citation omitted)

38. The average income for DSRs in the Turlock region over the three-year period starting October 2015 was $35,577. Aukstikalnis Decl. ¶ 8, dkt. 173–1. In addition, for 2016, a DSR would have received $5,306 in benefits and $1,067 from a matching 401(k) contribution. Id. at Ex. 8, p.11. This means an average DSR's total compensation for one year would have been $41,950, or $20,975 for six months. The Court finds the average compensation of a DSR provides an appropriate comparison based on Dykzeul's background, skills, and experience at that time. While Dykzeul had some prior sales experience, she had virtually no experience selling door-to-door or with products and services like these, and she had relocated to the local area relatively recently. The Court did not find Dykzeul's estimation of her own abilities to be applicable to the DSR position.

***6** 39. Estimates that DSR salaries of $100,000 were achievable are not credible. Only a single DSR in Turlock averaged over $75,000 during that period. It is clear the salaries DSRs were actually achieving are far, far below those Plaintiff hoped for when applying and assumed as attainable by her expert.

Duration of Backpay

40. The general rule in the Ninth Circuit is that backpay should be awarded "until the harm is fully remedied" and "absent "compelling circumstances" should be calculated from "from the date of the discriminatory act until the date of the final judgment." Kraszweski v. State Farm Gen. Ins. Co., 912 F.2d 1182, 1184, 1185 n.2 (9th Cir. 1990) (quotation omitted).

41. Courts have recognized the duration of backpay can be shortened based on circumstances showing the plaintiff is no longer suffering a harm from discrimination or if the harm has been fully remedied. "A claimant ceases to suffer damages when the employer offers him the job he sought or when he becomes unqualified to hold the position or is no longer willing to accept it." Id. at 1185 n.2. Similarly, the period of backpay may end because of the plaintiff's own actions if they demonstrate that her losses were caused by her own willful conduct or could not otherwise be attributed to

discrimination, such as when an employee voluntarily quits alternative employment or decides to leave the labor market entirely. Sangster v. United Air Lines, Inc., 633 F.2d 864, 868 (9th Cir. 1980).

42. The parties agree that the backpay period commences with Dykzeul's job interview in October 2015. However, they disagree on the end date because their experts reach different conclusions on how much she would have earned had she been hired by Charter, how long it would have taken her to actually earn that amount and therefore fully mitigated her damages, and whether any other events prematurely terminate her right to backpay from Charter by establishing a different cause for her subsequent damages.

43. Dykzeul's expert concludes she is owed backpay until the end of 2019 when she is hired by Goldco and her income has fully mitigated the damages she suffered due to Charter's discrimination. It takes until 2019 for this to occur because her expert concludes she would have been the most successful DSR in the region and would have received a salary significantly higher than that of her peers. Charter's own expert provides three different dates for when Dykzeul is no longer entitled to backpay based on different DSR income estimates and when she is allegedly terminated for cause by Patient Care America. The Court ultimately finds none of the experts' calculations or factual scenarios meaningfully helpful in determining how long Dykzeul is entitled to receive backpay.

44. Dykzeul's primary requirement for a job was a commission structure where she could achieve a six-figure income. Trial Tr. July 21 at 279–280. Besides her testimony, this is also the conclusion drawn by her own expert and confirmed by her subsequent job history showing she continued applying for and working at multiple sales jobs until she found one where she could excel, which she ultimately did at Goldco in February 2018.

45. The Court finds that, had she been hired as a DSR, she would have quickly (and accurately) realized that Charter's salary predictions were virtually impossible to achieve, and she would not have stayed as long as the 73.3% of the DSRs in Turlock who left Charter within nine months of being hired. Dkt. 145 ¶ 18.

***7** 46. Therefore, even if Dykzeul had been hired by Charter she would have continued looking for a high-paying sales job, and she would have similarly concluded that to do so she needed to move to Los Angeles. The Court also concludes that even if Dykzeul had been hired by Charter she still would have moved to Los Angeles roughly six months later, which coincides with when she actually started her position in Los Angeles with Heartland. In essence, the evidence establishes that obtaining the DSR position with Charter, with its actual compensation instead of the unrealistic and unobtainable figures Charter advertised, would not have meaningfully changed Dykzeul's long-term plans. Similarly, even if Charter had changed its position and later offered Dykzeul the DSR position, once she moved to Los Angeles she never would have accepted an offer to move back to sell Charter equipment door-to-door in Turlock.

47. Because (1) Dykzeul would have held the DSR position for only six months, and (2) had Charter offered her the DSR position more than six months after her interview she would not have accepted it, Dykzeul is entitled to six months of backpay in order to make her whole for her injuries caused by Charter's discriminatory conduct. See Kraszweski, 912 F.2d at 1185 n.2 ("A claimant ceases to suffer damages when ... no longer willing to accept [the position]").

Offset/Backpay

48. The Court has already concluded above that Dykzeul would have left Charter and Modesto in March-April 2016 approximately six months after her interview with Charter. This means that her backpay must be offset only with the income she received from AppStar, where she worked until March 2016. In 2015 she earned $2,823 in income from AppStar, and in January through March of 2016 she earned an additional $7,865.17. SF ¶¶ 20–21. Combining these figures, Dykzeul earned a total of $10,688.17 in income that must be offset from the backpay she receives from Charter.

49. Dykzeul argues for the first time in her Closing Reply Brief that this income from AppStar need not be offset under California law based on Villacorta v. Cemex Cement, Inc., 221 Cal. App. 4th 1425 (2013). Pl. Closing Reply Br. at 39. The Court declines to address a legal argument apparently raised for the first time at the last possible opportunity. The Court also notes a split of authority among California appellate courts, with the opinion in Martinez v. Rite Aid Corp., 63 Cal. App. 5th 958, 969 (2021), expressly disagreeing. Moreover, even Dykzeul's own expert offset all of the income she actually earned. Dkt. 141 ¶ 5.

Total Backpay Owed

50. For the six months she would have worked at Charter as a DSR in Turlock Dykzeul would have earned $20,975 in total compensation, which must be offset by the $10,688.17 she actually earned during that period from working for AppStar. Dykzeul is therefore entitled to the difference of $10,286.83 as an award of backpay from Charter for its violations of FEHA and Title VII for its intentional religious discrimination as well as failure to accommodate her religious practices.

51. As part of Plaintiff's backpay, she may also be entitled to prejudgment interest. Loeffler v. Frank, 486 U.S. 549, 557 (1988) ("Title VII authorizes prejudgment interest as part of the backpay remedy in suits against private employers.").

52. To avoid further disputes and unnecessary calculations, backpay shall be calculated on the total amount as if it were due on April 1, 2016, to be paid at the 7% per annum default rate set by California Constitution. See Cal. Const., art. XV, § 1.

Emotional Distress

53. Dykzeul seeks $500,000 for damages from the emotional distress caused by Charter's conduct. Dykzeul never saw a mental health professional with respect to her alleged emotional distress in this case and the only evidence introduced at trial to support the existence of her emotional distress was her own testimony. In essence, she seeks damages for emotional distress based on two categories, the emotional distress she suffered from Defendant's unlawful conduct, and the emotional distress she suffered in her own life that would have been avoided had Defendant hired her. Plaintiff describes all these as compensable as "make-whole emotional distress damages." Pl. Closing Br. at 41. Plaintiff does not provide any legal authority supporting the recovery of each item of damages based on the testimony she cites in her Closing Brief. More substantively, virtually all of the pieces of evidence that Plaintiff argues entitle her to "an award for emotional damages of at least $500,000" consist of Plaintiff merely pointing to the transcript every time she said something was distressing or became emotional. Plaintiff does not satisfy her burden of establishing the existence of compensable damages caused by Charter's wrongful conduct through scattershot and unexplained citations to the trial transcript. The Court therefore concludes that Plaintiff has not established she is entitled to damages for emotional distress based on the legal arguments and evidence presented at trial.

***8** 54. In any event, Plaintiff's testimony regarding the emotional distress she allegedly experienced when she was not hired was not credible. Among other things, Plaintiff indignantly testified that although she had interviewed for positions and not been hired before, this was different and caused compensable emotional distress, claiming: "I've never been rejected from a job based solely on my faith and keeping Sabbath for 24 hours. Never. That's never happened to me before." Trial Tr. July 21 at 293:19-21. However, after being confronted on cross-examination with a previous lawsuit she filed, Plaintiff became defensive until she eventually admitted she had sued a previous employer for failure to accommodate her Sabbath observance when working on the weekends had not been mentioned during that interview. Trial Tr. July 21 at 323:23-324:23. Dykzeul's indignant denials that this had never happened to her before may have been technically correct because the previous discrimination occurred once she was an employee and therefore after she was hired. But this distinction has no significance to Dykzeul's harm or emotional distress and instead came across more like a lawyer making the best argument available and not a genuine expression of emotional distress because of religious discrimination. More significantly, it provides even further reasons for the Court's skepticism of her testimony where it lacks any meaningful corroboration.

55. Plaintiff's second theory of emotional distress damages is for emotional distress she experienced from her personal life that she concludes would have been avoided had Charter hired her. This includes (1) financial distress as a newly divorced woman burning through her savings while trying to find a job, (2) stress and anxiety from a health condition treated with expensive medication that requires her to have a job that provides health insurance, and (3) emotional distress from moving in with her family – who did not share her challenges or her faith – and then having to leave that support system behind to move to Southern California because she could not find a job in Modesto. Pl. Closing Br. at 42–43.

56. Plaintiff provides no explanation or authority suggesting any of these are compensable as emotional distress damages under FEHA or Title VII, and the Court declines to look for authority on its own initiative, particularly because Plaintiff does not establish any of these issues would have been avoided had Charter hired Plaintiff as a DSR. Plaintiff has unreasonably concluded that being hired by Charter as a DSR can eliminate financial stress and prevent family members from causing stress to each other.

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57. Charter's decision not to hire Dykzeul did not cause her compensable financial stress. Dykzeul was asked if it caused an emotional impact and she testified: "Well, yes, it did of course. I was very stressed financially because I have, like I've mentioned, I have a strong work ethic." Trial Tr. July 21at 292:12–16. It is unclear what fact she thinks this testimony established or why she thinks it is sufficient to support a claim for damages due to emotional distress, because nothing in the language she quotes suggests anything beyond her ordinary levels of stress that she testified she had been feeling since her divorce five years earlier in 2011.

58. Dykzeul's conflicting testimony is also insufficient to establish she experienced compensable financial distress. She testified that she was "very stressed financially" after not getting the job at Charter. Trial Tr. July 21 at 292:12–16. But she also testified that she had already been experiencing considerable financial stress from her divorce and dwindling savings which dates back to 2011, four years before she ever interviewed with Charter. Trial Tr. July 22 at 286 (testifying that she was bleeding through her savings since her divorce in 2011); Pl. Closing Br. at 40 (citing to both as evidence of recoverable financial distress damages). The position with Charter was one of many Plaintiff was pursuing and Dykzeul's own position appears to be that she had been in a state of continual financial distress from 2011 onwards. At no point did she believe she had secured the position, and there is no evidence that she gave up pursuing other opportunities in order to apply to Charter. Nothing about being rejected by Charter materially changed her financial situation. Dykzeul has not shown she is entitled to damages for financial distress caused by Charter's decision not to hire her.

***9** 59. Plaintiff did not suffer compensable economic distress from Charter's decision not to hire her due to uncertainty over whether she would have medical benefits that allow her to obtain expensive but necessary medication. She testified that she suffered severe emotional distress over Charter not hiring her because she needed a job with benefits otherwise "it could cripple me if I don't take the expensive medication that I have to take." Trial Tr. June 21 at 296. But this testimony alone does not establish that Charter's wrongful decision not to hire her was a but-for or proximate cause of any medication-related emotional distress, and there are no facts in the record on her costs or access to this medication at any point before or after her interview with Charter. Notably, while Dykzeul's post-trial briefing argues that the lack of medication caused her compensable damages due to anxiety and stress, she never testified to experiencing that; she mentioned only her medication and the lack of health benefits as one of the reasons for why she changed jobs so many times.

60. Dykzeul's last asserted source of damage from emotional distress comes from her inability to seek support from her family when Charter did not offer her the position because her family did not observe the Sabbath and this resulted in her feeling very alone and withdrawn. Pl. Closing Br. at 42. This is not cognizable emotional distress damage. The Court is not privy to the nature of Dykzeul's relationship with her family members and how they view her practice of observing the Sabbath, nor has Plaintiff explained why her family members needed to share her faith in order for her to be able to talk to them about this incident. There are simply far too many unexplained or missing facts for Dykzeul to establish compensable damages from emotional distress on this issue.

61. The Court has already addressed some of the specific instances where Dykzeul's credibility was at the forefront of the trial. To avoid any doubts, the Court has evaluated her credibility based on her memory, demeanor, financial motives, and in light of all other evidence – and generally found her testimony not to be credible. [3] See Model Civ. Jury Instr. 9th Cir. 1.14 (2021). Her testimony often felt highly exaggerated if not outright fabricated at times, particularly with the level of details she could testify to when those details built on her side of the story, but seemingly struggled at times to remember much more basic details when being cross-examined. Indeed, the level of emotional pain exhibited while testifying often appeared out of place given the actual facts she was testifying to regarding events that often occurred five to ten years before she took the stand in this case, as if her testimony reflected an awareness that her testimony was the only basis for her claim of $500,000 in emotional distress.

Punitive Damages [4]

62. To recover punitive damages, a Title VII plaintiff must show that the employer engaged in discrimination "with malice or with reckless indifference to the federally protected rights of [the plaintiff]." 42 U.S.C. § 1981a(b)(1). A finding of "malice" or "reckless disregard" hinges on an employer's "knowledge that it may be acting in violation of federal law, not its awareness that it is engaging in discrimination." Kolstad v. Am. Dental Ass'n, 527 U.S. 526, 535 (1999);

see also id. at 536 (Employer may be liable for punitive damages where it "discriminate[s] in the face of a perceived risk that its actions will violate federal law.").

63. Plaintiff is not entitled to punitive damages because she has failed to establish malice or reckless disregard as defined by the Supreme Court. Id. at 535. While "in general, intentional discrimination is enough to establish punitive damages liability," courts have also acknowledged there are some circumstances when a factfinder can find intentional discrimination, but the defendant is not liable for punitive damages. Passantino v. Johnson & Johnson Consumer Prods., Inc., 212 F.3d 493, 515 (9th Cir. 2000) (citing Kolstad, 527 U.S. at 536). These include cases like this one "in which the employer discriminates with the distinct belief that its discrimination is lawful." Kolstad, 527 U.S. at 537. While Defendant did violate Title VII by failing to accommodate Dykzeul's religious beliefs, the evidence shows Swift made the decision because he incorrectly believed it was lawful do so because hiring her would require him to work every Sunday.

III. CONCLUSION

***10** Judgment shall be entered in favor of Teresa Dykzeul and against Charter Communications, Inc., on each of Dykzeul's claims under FEHA and for failure to accommodate under Title VII. Based on the foregoing, for backpay and prejudgment interest Dykzeul is entitled to a judgment totaling $15,579.90.

IT IS SO ORDERED.

All Citations

Slip Copy, 2022 WL 3211003

Footnotes

1 Any finding of fact deemed to be a conclusion of law is incorporated into the conclusions of law. Any conclusion of law deemed to be a finding of fact is incorporated into the findings of fact.

2 The Court declined to rule on Dykzeul's Motion *in limine* barring Charter from offering a mixed motive/same decision defense. Order on MILs at 11, dkt 11. The Court instead gave Charter a deadline to submit a written offer of proof on the factual and legal basis for its assertion of this defense, which Charter failed to provide. Charter therefore finds against Charter as to this defense.

3 However, the Court did find credible her testimony that her religious beliefs were sincerely held.

4 The Court previously granted Charter summary judgment on Dyzkeul's request for punitive damages under FEHA. MSJ Order at 20, dkt. 64.

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Jonesboro Division.

EQUAL EMPLOYMENT OPPORTUNITY COMMISSION, Plaintiff
v.
SOUTHWESTERN BELL TELEPHONE, L.P. d/b/a AT & T Southwest and SBC Communications, Defendant.

No. 3:06CV00176 JLH.
|
Oct. 3, 2007.

Attorneys and Law Firms

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OPINION AND ORDER

J. LEON HOLMES, United States District Court.

***1** The Equal Employment Opportunity Commission brought this action on behalf of Jose (Joe) Gonzalez and Glenn Owen alleging that they were discriminated against by Southwestern Bell because of their religious beliefs in violation of Title VII of the Civil Rights Act of 1964. Southwestern Bell has filed a motion for summary judgment. For the following reasons, this motion is denied.

I.

Owen and Gonzalez, who are members of the Jehovah's Witness faith, worked as customer service technicians for Southwestern Bell, now known as AT & T, at an Installation and Repair Center in Jonesboro, Arkansas. As customer service technicians at the Installation and Repair Center, Owen and Gonzalez installed new phone and high-speed internet lines and responded to customer complaints about telephone outages.

In keeping with its 2004 agreement with the Communication Workers of America Union, the Center implemented a procedure for employees to schedule vacation time. In October or November of each year, management circulated a vacation schedule for the following year. The employees indicated on the master schedule the days or weeks that they planned to take as vacation. The employees were allowed to choose their vacation days in order of seniority. After the master schedule was complete, an employee could still ask for other days off by submitting a vacation request form. According to AT & T, during the summer months, only one technician per day could take off. If a request were made for a day that no other employee was scheduled to be off, then that request would be granted, but if a request were made for a day in which another employee was scheduled to be off, according to AT & T, the request would not be granted, though the employee requesting that day could wait to see if the senior employee who had already scheduled a vacation day changed his mind about taking that day.

As part of practicing their faith, Owen and Gonzalez attend a yearly Jehovah's Witness convention. The dates for the convention are announced early in the year, so they are always announced after the master vacation schedule has been circulated at the Jonesboro Installation and Repair Center. Thus, Owen and Gonzalez had to make a vacation request if they wanted that time off. The 2005 convention was scheduled for July 15-17 (Friday through Sunday). The only day of concern in this case is Friday, July 15, when both men were scheduled to work. They were not scheduled to work that Saturday. Customer service technicians do not work on Sundays.

For purposes of the summary judgment motion, AT & T concedes that before July 2005 Owen and Gonzalez submitted multiple written and verbal requests to Jacob Garrett, the manager of the Jonesboro Center, for vacation time on July 15. The men approached Garrett about the Jehovah's Witness convention and its importance on July 7 as well. Garrett said that he would let them know about it closer to July 15.

The decision had still not been made on July 14. Gonzalez spoke with Garrett that day about the matter by telephone approximately three times. Garrett and Phillip Farley, the area manager to whom Garrett reported, were working together that day and discussed the request made by Owen and

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Gonzalez. Garrett also discussed the request with Marty Benz.[1] Benz was the manager of the Walnut Ridge, Paragould, and Blytheville Centers, but he worked out of the Jonesboro office. Benz and Garrett discussed ways the situation could be handled, such as getting the employees who were scheduled for vacation time to switch with Owen and Gonzalez, or requesting help from computer service technicians from other centers, as they sometimes would do in circumstances of a heavy workload. After reviewing the workload information and considering other factors, Garrett told Owen and Gonzalez on the afternoon of July 14 that "the forecast doesn't look good" and he would "try to do what [he could] if the load permits." Later that afternoon or evening, Garrett informed them that the workload would not allow them to take the day off. Because Garrett suspected they might not show up the next day, he gave each man a directive to come to work or face serious consequences. Each responded that he would not be at work. Farley contacted the local union president, who called the men to reiterate that they would face serious consequences for missing work.

***2** Owen and Gonzalez missed work on July 15. Farley and Garrett suspended the men after an investigatory meeting. Farley recommended to the director of Installment and Repair that the two men should be terminated. The director followed his recommendation.

Gonzalez and Owen filed a charge of discrimination with the Equal Employment Opportunity Commission. The Commission investigated the charges and issued a letter of determination finding probable cause that both men had been denied a reasonable accommodation because of their religious beliefs. The Commission filed this lawsuit on behalf of Gonzalez and Owen based on religious discrimination under Title VII.

II.

A court should enter summary judgment when "the pleadings, depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." *Fed.R.Civ.P.* 56(c); *see also* *Anderson v. Liberty Lobby, Inc.,* 477 U.S. 242, 250, 106 S.Ct. 2505, 2511, 91 L.Ed.2d 202 (1986). When a nonmoving party cannot make an adequate showing on a necessary element of the case on which that party bears the burden of proof, the moving party is entitled to judgment as a matter of law. *Celotex Corp. v. Catrett,* 477 U.S. 317, 322-23, 106 S.Ct. 2548, 2552, 91 L.Ed.2d 265 (1986). The moving party bears the initial responsibility of demonstrating the absence of a genuine issue of material fact. *Celotex,* 477 U.S. at 323, 106 S.Ct. at 2553. If the moving party meets this burden, "the nonmoving party must come forward with 'specific facts showing that there is a *genuine issue for trial.,*" *Matsushita Elec. Indus. Co. v. Zenith Radio Corp.,* 475 U.S. 574, 587, 106 S.Ct. 1348, 1356, 89 L.Ed.2d 538 (1986) (quoting FED.R.CIV.P. 56(e)). A genuine issue for trial exists only if there is sufficient evidence to allow a jury to return a verdict for the nonmoving party. *Anderson,* 477 U.S. at 249, 106 S.Ct. at 2511. In deciding a motion for summary judgment, the Court views the facts in the light most favorable to the nonmoving party and draws all inferences in his favor, mindful that summary judgment seldom should be granted in discrimination cases where claims are often based on inferences. *Peterson v. Scott County,* 406 F.3d 515, 520 (8th Cir.2005); *Bassett v. City of Minneapolis,* 211 F.3d 1097, 1099 (8th Cir.2000) (collecting cases). *But see* *Bainbridge v. Loffredo Gardens, Inc.,* 378 F.3d 756, 762 (8th Cir.2004) (Arnold, J., dissenting).

III.

It is unlawful for an employer to "discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's ... religion" 42 U.S.C.2000e-2(a)(1) (2000). "An employee establishes a prima facie case of religious discrimination by showing that: (1) the employee has a bona fide religious belief that conflicts with an employment requirement; (2) the employee informed the employer of this belief; (3) the employee was disciplined for failing to comply with the conflicting employment requirement." *Wilson v. U.S. West Communications,* 58 F.3d 1337, 1340 (8th Cir.1995). For purposes of the summary judgment motion, AT & T does not dispute that Owen and Gonzalez had a bona fide religious belief that required them to attend the convention on July 15, that they so informed AT & T, and that they were disciplined for missing work on July 15.

***3** Once the plaintiff establishes a prima facie case of religious discrimination, the burden shifts to the employer to show "that he is unable to reasonably accommodate to an employee's ... religious observance or practice without undue hardship on the conduct of the employer's business." 42 U.S.C.2000e(j). An employer must prove either that the employee was reasonably accommodated or that the employee could not be reasonably accommodated without undue hardship. *EEOC v. Chemsico, Inc.,* 216 F.Supp.2d 940, 950 (E.D.Mo.2002) (citing *Seaworth v. Pearson,* 203 F.3d 1056 (8th Cir.2000)). In its motion for summary judgment, AT & T asserts only the latter, that the accommodation requested by Owen and Gonzalez caused an undue hardship for AT & T.

AT & T argues that when Owen and Gonzalez disregarded the directive to be at work on Friday, July 15, they caused an undue hardship on AT & T because other employees were required to work overtime and AT & T was forced to pay premium wages for that work. AT & T also argues that the absence of Owen and Gonzalez caused it to be unable to meet the service needs of all of its customers that day.

The Supreme Court has observed that "the employer's statutory obligation to make reasonable accommodation for the religious observance of its employees, short of incurring an undue hardship, is clear, but the reach of that obligation has never been spelled out by Congress or by EEOC guidelines." *Trans World Airlines, Inc. v. Hardison,* 432 U.S. 63, 75, 97 S.Ct. 2264, 2272, 53 L.Ed.2d 113 (1977). In *Hardison,* the Supreme Court held that to require the employer "to bear more than a *de minimis* cost" to accommodate the employee's religious beliefs is an undue hardship. *Id.* at 85, 97 S.Ct. at 2277. To determine whether an accommodation would require the employer to bear more than a *de minimis* cost, "the circumstances under which a particular accommodation may cause undue hardship ... must be made in the particular factual context of each case." *Chemsico,* 216 F.Supp.2d at 952.

In *Hardison,* the Supreme Court held that it would be an undue hardship if the employer were required to pay "premium wages" or lose efficiency in other jobs from which substitute workers would be taken to replace the employee who missed work for religious reasons. *Id.* at 84, 97 S.Ct. at 2277. Similarly, in *Mann v. Frank,* 7 F.3d 1365, 1369 (8th Cir.1993), the Eighth Circuit upheld the district court's determination that accommodating Mann's religious belief, which required her not to work from sundown Friday until sundown Saturday, would be an undue hardship on the employer. In that case, Mann had placed her name on a list to volunteer for overtime shifts but suggested that an employee who had not volunteered on the list could be substituted for her when the shift was on Saturday. *Id.* She also suggested requiring other employees to work longer shifts or that the employer not replace her on those shifts. *Id.* The court recognized, however, that requiring other employees to work longer would violate the collective bargaining agreement (an undue hardship the employer is not required to undertake), and that "just doing without" her would cause a "significant loss in efficiency." *Id.* at 1369-70. In *Cook v. Chrysler Corp.,* 981 F.2d 336, 339 (8th Cir.1992), the Eighth Circuit upheld a finding that there was more than *de minimis* cost to an employer when an employee's religious beliefs did not allow him to work on Friday nights or Saturdays. There, the costs included the fact that one proposed accommodation would make the employee part-time but would allow him to receive full-time benefits at a cost to the employer of $1500 per year. *Id* . (recognizing alternatively the cost of hiring another temporary part-time employee to work employee's shifts). The facts here are different from those in *Hardison, Mann,* and *Cook* because each of those cases involved employees whose religious beliefs required them to miss work one day out of every week, whereas Owen and Gonzalez needed accommodation only once each year.

***4** AT & T asserts that sixteen hours of overtime resulting in $882.88 in "premium wage payments" were required due to the failure of Owen and Gonzalez to work on July 15. The EEOC says that the cost of accommodating Owen and Gonzalez should properly be calculated as $441.44, or $220.72 each. The EEOC notes that AT & T's calculation does not recognize the amount that it saved by not paying Owen and Gonzalez on July 15. The record is silent as to whether Owen and Gonzalez could take a day without pay. If they could do so, the EEOC would seem to be correct that the cost of accommodating Owen and Gonzalez would be $220.72 per person. Furthermore, the EEOC argues that this overtime cost must be viewed in context. Specifically, the EEOC points to evidence that overtime is a regular occurrence for AT & T's technicians in the Jonesboro Center. An overtime report for technicians in the Jonesboro Center showed that 987.56 overtime hours were worked in July 2005 and a total of 7,088.68 overtime hours were worked during the first seven months of 2005. In that context, AT & T argues, the sixteen hours of overtime paid by AT & T on July 15 as a result of Owen and Gonzalez missing work, is *de minimis.*

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Viewing the facts in the light most favorable to the nonmoving party and drawing all reasonable inferences in its favor, as the Court must do in ruling on a motion for summary judgment, the Court cannot say as a matter of law that the cost to AT & T of accommodating Owen and Gonzalez was no more than *de minimis.*

In *Chemsico,* the court denied summary judgment because the employer made no attempts to replace the employee, the employer did not inquire with the Union representative about a possible accommodation, and the employer used volunteers or ran its operations with fewer employees on other occasions when employees missed work. *Chemsico,* 216 F.Supp.2d at 953. While AT & T asserts that no more than one employee could miss work on a certain day, the EEOC points to evidence of occasions on which more than one employee was allowed to miss work. The EEOC also observes that, while the Union representative was contacted, the contact was made after the managers decided to give Owen and Gonzalez a directive to work despite their religious obligation to attend the convention; management did not contact the representative about possible accommodation of the employees.

Finally, although the affidavit of Phillip Farley says that the service needs of some customers could not be met on July 15, there is no evidence from which the Court could say that this was more than a *de minimis* hardship. Farley says that delays in repairs and installation often result in customers being displeased with AT & T. He says that customers often stay home or stay off work to meet AT & T's technicians. He says that, when AT & T does not meet a customer's service needs, the customer may complain to the Arkansas Public Service Commission or switch to another provider. He says that dissatisfied customers may complain to their neighbors, which can result in lost customers. He also says that regulations of the Arkansas Public Service Commission require that service be restored within 24 hours after an outage is reported. However, Farley does not say that any of these potential adverse consequences actually occurred as a result of the Jonesboro Center's inability to meet all of the service needs on July 15. He does not say that any customer actually complained to the Arkansas Public Service Commission, switched to another provider, or injured AT & T's reputation in the community. He does not say that AT & T actually violated a regulation or was subjected to any penalty by the regulatory authority. Nothing is said about the nature of the service needs that went unmet or the actual consequence of failing to meet those needs, so it is impossible to say, on the record before the Court, whether AT & T's inability to meet these service needs caused a *de minimis* or more than *de minimis* hardship.

CONCLUSION

***5** AT & T has failed to show that there is no genuine issue of material fact as to whether accommodating Owen's and Gonzalez's religious beliefs would have caused it to suffer more than a *de minimis* hardship. AT & T's motion for summary judgment is therefore DENIED.

IT IS SO ORDERED.

All Citations

Not Reported in F.Supp.2d, 2007 WL 2891379

Footnotes

1 AT & T's briefs spell his name as *Binns,* but his deposition transcript reports his name as *Benz.*

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2021 WL 5908208
United States District Court, D. Arizona.

William ENRIQUEZ, Plaintiff,
v.
GEMINI MOTOR TRANSPORT LP, Defendant.

No. CV-19-04759-PHX-GMS
|
Signed 12/14/2021

Attorneys and Law Firms

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Jacqueline Faith Langland, John Greg Coulter, Monica Marie Ryden, Jackson Lewis PC, Phoenix, AZ, for Defendant.

ORDER

G. Murray Snow, Chief United States District Judge

***1** Pending before the Court are Gemini Motor Transport LP's ("Defendant") Motion for Summary Judgment (Doc. 65) and Mr. William Enriquez's ("Plaintiff") Motion for Partial Summary Judgment (Doc. 69.) For the reasons below, both motions are granted and denied in part.

BACKGROUND

Defendant is a trucking company that delivers fuel and goods to Love's Travel Stops & Country Stores. (Doc. 66-1 at 2.) Plaintiff is a Seventh-day Adventist who observes the Sabbath as a tenet of his faith. (Doc. 69-1 at 4.) Sabbath lasts from sundown Friday to sundown Saturday. In July 2017, Defendant interviewed Plaintiff for a position as a fuel delivery driver. Although Plaintiff testified that he disclosed that he observed the Sabbath during his interview, Defendant contests this fact. Plaintiff was ultimately offered —and accepted—a Freight Driver position with Defendant.

Plaintiff began work as a Freight Driver in August 2017. During Plaintiff's brief time with Defendant, Plaintiff worked approximately two Saturdays that disrupted his Sabbath observance and caused him to miss church. When Plaintiff was scheduled to work another Saturday in September, Plaintiff informed Defendant that he could not accept the route because working on Saturday was against his religion. Another employee ultimately covered the route.

After the September incident, Ruben Astorga ("Mr. Astorga"), Regional Manager for Defendant, discussed the matter with Plaintiff on a phone call. That phone call was recorded. Although the parties dispute what occurred during the call, it ended with Plaintiff no longer being employed by Defendant. Plaintiff then filed a charge with the EEOC and later commenced this lawsuit, alleging various claims under Title VII and Arizona law.

I. Plaintiff's Motion to Strike Contained in His Response to Defendant's Motion for Summary Judgment

The Court will consider Plaintiff's Motion to Strike contained in his Response because it is not procedurally improper. Although parties may not file a separate motion to strike evidence, the parties may make an "argument regarding[ ] the admissibility of evidence offered in support of or opposition to a motion ... in the objecting party's responsive or reply memorandum." LRCiv. 7.2(m)(2). All of Defendant's cited cases are either inapposite because the objecting party filed a motion to strike separate from the underlying motion, or because the court was relying on an older version of the local rule. *See* *Larson v. United Nat. Foods. W., Inc.*, No. CV-10-185-PHX-DGC, 2010 WL 5297220, at *1 (D. Ariz. Dec. 20, 2010); *Lexington Ins. Co. v. Scott Homes Multifamily, Inc.*, No. CV-12-02119-PHX-JAT, 2014 WL 231989, at *1 (D. Ariz. Jan. 22, 2014); *Gil v. JP Morgan Chase Bank, NA*, No. CIV 07-0181-PHX-SMM, 2009 WL 1628876 (D. Ariz. June 10, 2009).[1] Moreover, Defendant ignores 7.2(m)(1), which expressly permits motions to strike that "seek[ ] to strike any part of a filing or submission on the ground that it is prohibited (or not authorized) by a statute, rule, or court order." Plaintiff's Motion will be considered.

A. Legal Standard

1. MIDP Deadlines

***2** This case is governed by the Mandatory Initial Disclosure Pilot ("MIDP") project, which significantly alters the discovery rules contained in the Federal Rules of Civil Procedure. (Doc. 5.) In contrast to the Federal Rules, MIDP

requires that all parties disclose "facts that are relevant to the claims and defenses in the case, whether favorable or unfavorable, and regardless of whether they intend to use the information in presenting their claims or defenses." (Doc. 5 at 4.) MIDP also requires the parties to supplement their mandatory disclosures "in a timely manner, but in any event no later than 30 days after the information is discovered by or revealed to the party." (Doc. 5 at 5.)

Because MIDP applies, the parties were under an affirmative obligation to supplement their initial disclosures until the end of fact discovery. (Doc. 5 at 6.) The deadline for all supplementation in this case was February 5, 2021. (Doc. 51 at 1.) Therefore, all exhibits or facts therein must have been disclosed by that date to be considered on summary judgment. (Doc. 5 at 6); Fed. R. Civ. P. 37(b)(2).

2. Evidentiary Standard at Summary Judgment

At oral argument, the parties noted that there is a split of authority on what evidence may be considered at summary judgment. Because both parties make multiple evidentiary objections, the Court finds it necessary to survey the relevant law to ascertain the correct legal standard.

Fraser v. Goodale, 342 F.3d 1032 (9th Cir. 2003), is the leading case for the general evidentiary rule on summary judgment: "At the summary judgment stage, we do not focus on the admissibility of the evidence's form. We instead focus on the admissibility of its contents." *Id.* at 1036. *Fraser* involved the admission of the plaintiff's diary in opposition to a motion for summary judgment. *Id.* at 1036–37. Some courts, including this one, have hewn to the precise context of *Fraser*, holding that its relaxed standard applies *only to the non-moving party. See, e.g.*, *Cook v. Lee*, No. CV 17-02569-PHX-DGC, 2019 WL 2525373, at *3 n.3 (D. Ariz. June 19, 2019) ("[T]his focus on the content over the form of evidence at the summary judgment stage applies to the *nonmovant*[.]"); *Walters v. Odyssey Healthcare Mgmt. Long Term Disability*, No. CV-11-00150-PHX-JAT, 2014 WL 4371284, at *3–4 (D. Ariz. Sept. 4, 2014) ("[E]vidence offered in support of a motion for summary judgment [must] be admissible both in form and in content."); *Williams v. Trujillo*, No. CV 18-03239-PHX-MTL, 2021 WL 4439466, at *2 (D. Ariz. Sept. 28, 2021); *cf.* *Orr v. Bank of Am.*, 285 F.3d 764, 773 (9th Cir. 2002) ("We have repeatedly held that unauthenticated documents cannot be considered in a motion for summary judgment.").

Other courts, including the Ninth Circuit, have interpreted *Fraser* more liberally, applying it to both the moving and nonmoving party. *See, e.g.*, *Jeffries v. Las Vegas Metro. Police Dept.*, 713 F. App'x 549, 550–51 (9th Cir. 2017) (holding that the district court "did not err in considering the exhibits attached to the Department's motion for summary judgment ... [because] a district court may consider inadmissible evidence as long as the evidence could be presented in an admissible form at trial"); *Lober v. DeJoy*, 845 F. App'x 672, 673 (9th Cir. 2021) ("The district court did not abuse its discretion by overruling Lober's objections to defendant's evidence in support of summary judgment, because such evidence was not inadmissible hearsay, or was capable of being provided in admissible form at trial."); *Santa Ana Police Officers Ass'n v. City of Santa Ana*, 723 F. App'x 399, 402 (9th Cir. 2018) (holding that the district court did not err by considering the defendant's exhibits on summary judgment because they "could be presented in an admissible form at trial"); *Zakiya v. Nevada*, No. 2:18-cv-00846-APG-BNW, 2020 WL 1639858, at *1 n.1 (D. Nev. Apr. 2, 2020) (holding that the moving party "need not present [evidence] in admissible form at summary judgment"); *Luna v. Moon*, No. 1:16-cv-00313-NONE-SAB, 2020 WL 1904827, at *11 n. 15 (E.D. Cal. Apr. 17, 2020) (same).

***3** The controversy seems to stem from whether the 2010 amendments to Rule 56 altered the evidentiary standard courts should employ at summary judgment. *See Does v. Elson S Floyd Coll. of Med.*, No. 2:20-cv-00145-SMJ, 2021 WL 3375725, at *4 (D. Nev. Aug. 3, 2021) ("[T]he 2010 Amendments to Federal Rule of Civil Procedure 56 only require that the *substance* of the proffered evidence ... be admissible at trial[.]") Amended Rule 56(c)(2) states, "A party may object that the material cited to support or dispute a fact cannot be presented *in a form* that would be admissible in evidence." Fed. R. Civ. P. 56(c)(2) (emphasis added). The committee notes to the amended rule state, "The burden is on the proponent to show that the material is admissible as presented *or to explain the admissible form that is anticipated.*" Fed. R. Civ. P. 56(c)(2) advisory committee's note to 2010 amendment (emphasis added). The language of both the rule and the committee notes do not distinguish between the movant and nonmovant but broadly state "a party" and "the proponent." This language indicates that so long as the evidence can be presented in an admissible form, strict compliance with the Federal Rules of Evidence

is not required for either party on summary judgment. 10A C. Wright, A. Miller & M. Kane, *Federal Practice and Procedure* § 2722 (4th ed. 2021); *cf. Sweet People Apparel, Inc. v. Phoenix Fibers*, 748 F. App'x 123, 126 (9th Cir. 2019) (Dorsey, J., dissenting) ("[D]istrict courts in this circuit (and the litigants who practice before them) would be well served by guidance on the continued viability of *Orr* after the 2010 amendment to Rule 56."). Following the language of the Rule and the committee notes, therefore, this Court holds that so long as the proponent can show that the contents of an exhibit will be admissible at trial, it can be considered on summary judgment regardless of its form. *Cf.* *Sandoval v. Cnty. of San Diego*, 985 F.3d 657, 666–67 (9th Cir. 2021) ("If the contents of a document can be presented in a form that would be admissible at trial—for example, through live testimony by the author of the document—the mere fact that the document itself might be excludable hearsay provides no basis for refusing to consider it on summary judgment.")

B. Motion to Strike Defendant's Motion for Summary Judgment

Plaintiff's Motion to Strike Defendant's Motion is denied because Plaintiff cites to no authority that requires a "Notice of Motion" to be filed in this district. Neither Federal Rule of Civil Procedure 56 nor the Local Rules require any such "Notice of Motion" to be filed. The Court will consider Plaintiff's evidentiary arguments in turn. [2]

C. Declaration of Jake Stieber (Exhibit 7)

Defendant failed to disclose HR Representative Jake Stieber ("Mr. Stieber") as a witness in its supplemental disclosures. (Doc. 85 at 6.) However, Defendant did disclose a "Custodian of Records/HR Representative ... to lay foundation for Defendant's file and documentation." (Doc. 78-2 at 86.) Most of the underlying facts and all exhibits referenced in the declaration were disclosed pursuant to MIDP. (Doc. 78-2 at 87.) Mr. Stieber's declaration generally authenticates facts and documents that were already disclosed, (Doc. 78-2 at 87–88); (Doc. 66-7), so it should be of no surprise to Plaintiff that an HR representative would lay a foundation for Defendant's evidence. The Court will consider Mr. Stieber's declaration to the extent it authenticates evidence and establishes his personal knowledge.

However, to the extent that Mr. Stieber's declaration offers substantive evidence as to Defendant's "hiring and firing practices," (Doc. 66-7 at 2), these paragraphs are outside the scope of Defendant's disclosure. Therefore, at least at present, Plaintiff's Motion to Strike is granted as to paragraphs twelve through fifteen.

D. Declaration of Beth Conner (Exhibit 26) and Exhibits 27 and 28

Ms. Conner was not disclosed pursuant to MIDP, (Doc. 85 at 6), and her declaration seeks to authenticate two exhibits offered in support of Defendant's Motion. (Doc. 68-5.) However, even if the Court were to consider Ms. Conner's declaration, her testimony is insufficient to authenticate Exhibit 27, an excel spreadsheet of her own research, and Exhibit 28, a PDF of a webpage listing convictions of "Enriquez, William." Exhibit 27 is hearsay, and Exhibit 28 is unauthenticated. The Court does not see how either would be admissible at trial. Regardless, because neither Exhibit 27 nor 28 affects the merits of the underlying summary judgment motion, Plaintiff's Motion to Strike Ms. Conner's declaration and attached exhibits is denied.

E. Plaintiff's Motion to Strike Exhibits 1, 4, 11, and 21

1. Declarations of Ruben Astorga and Brandon Hall (Exhibits 1 and 21)

***4** Plaintiff contends that Mr. Astorga's and Brandon Hall's ("Mr. Hall") declarations should be stricken because they are unauthenticated and hearsay. However, because the Court finds that neither declaration would change the ultimate outcome on the relevant issue—undue hardship—Plaintiff's Motion is denied.

2. Fann Contracting (Exhibit 4)

Plaintiff moves to strike Exhibit 4 because it is unauthenticated and hearsay. However, Exhibit 4 can be authenticated at trial by the Custodian of Records from Fann Contracting. Although the Court declines to consider the Custodian's declaration on its merits because of Defendant's late disclosure to the Court, [3] the Court does note that the declaration was disclosed to Plaintiff. (Doc. 78-2 at 87; Doc. 96-1 at 26.) Moreover, in its supplemental disclosure, Defendant indicated that it would call "all necessary foundation witnesses *including those from plaintiff's previous or subsequent employers*." (Doc. 78-2 at 86 (emphasis added).) Plaintiff cannot claim surprise by Defendant calling

a witness to lay a foundation for these records, which were disclosed properly under MIDP. Because Exhibit 4 can be authenticated at trial, it is not excludable on that ground.

Exhibit 4 is also not inadmissible hearsay. "Hearsay" is an out-of-court statement offered to prove the truth of the matter asserted. Fed. R. Evid. 801(c). "Statement" means "*a person's* oral assertion, written assertion, or nonverbal conduct." *Id.* 801(a). The only "person" plausibly making an assertion in these records is Plaintiff: his name is on the document, and the record was made, presumably, as Plaintiff documented his time on the job. Therefore, if these records even meet the hearsay definition at all, they are the statements of a party opponent and thus admissible. *Id.* 801(d)(2). [4]

3. Julio Anaya's Notes (Exhibit 11)

Plaintiff next moves to strike Julio Anaya's ("Mr. Anaya") notes from his interview with Plaintiff. Again, Plaintiff contends that the notes are unauthenticated and hearsay. Because the Court finds that the notes do not affect the merits of the underlying motions, Plaintiff's Motion is denied.

F. Plaintiff's Motion to Strike Witnesses Disclosed on the Last Day of Discovery

Plaintiff also asks the Court to strike the fourteen witnesses disclosed to Plaintiff on February 5—the fact discovery deadline. (Doc. 78 at 7.) Because such a motion is relevant to trial but not to summary judgment, the Court declines to make a ruling at this time. Nevertheless, Defendant's last-minute designation would have prevented Plaintiff from conducting any discovery concerning such witnesses. Defendant, therefore, should not expect that any such witnesses will be allowed to testify at trial, except to the extent, if any, that Defendant seeks and is allowed to reopen discovery and designate such witness's testimony as a remedy for Plaintiff's failure to appropriately disclose his past criminal convictions. (Doc. 98.) However, although a few witnesses *may* be permitted in this way, not all of the fourteen will be. As this court previously informed the parties: "[p]arties who fail to timely disclose relevant information will be precluded from using it in the case and may be subject to other sanctions. Parties who unreasonably postpone disclosure of relevant information to the end of the discovery period will also be subject to sanctions." (Doc. 21 at 2 n.1.)

II. Defendant's Evidentiary Objections

A. Transcript of Phone Conversation Between Mr. Astorga and Plaintiff

***5** Defendant argues that the Court should not consider the transcript of Plaintiff's conversation with Mr. Astorga that resulted in the end of Plaintiff's employment with Defendant. (Doc. 80 at 3–4.) Although it is true that Plaintiff quotes the transcript and fails to cite to it in his Statement of Facts, (Doc. 70 at 6–7), it will not be precluded. One does not have to "scour the record" to discern what Plaintiff is quoting. *Keenan v. Allan*, 91 F.3d 1275, 1279 (9th Cir. 1996). SOF ¶ 19 states, "Mr. Astorga called [Plaintiff] to discuss his work schedule. This call was recorded and transcribed. Mr. Astorga has confirmed the accuracy of both the audio recording and the transcription." (Doc. 70 at 6.) SOF ¶ 20 begins by stating "[i]n this call" and then proceeds to quote at length from the conversation. It is, therefore, perfectly clear where in the record Plaintiff was citing to. Moreover, the transcript was disclosed, (Doc. 69-2 at 128), [5] and Defendant will not be harmed by the Court's consideration of the transcript. The call was referenced in Plaintiff's complaint, (Doc. 1 at 4–5), and it is vital to several of Plaintiff's claims in this case. Defendant cannot claim surprise by its appearance at summary judgment. Therefore, the Court will consider the transcript. [6]

B. Exhibits 1, 3, and 5 to Plaintiff's Declaration and Exhibit A-22

Defendant objects to Exhibits 1, 3, and 5 to Plaintiff's declaration in its Reply, (Doc. 85 at 1), and to "Enriquez Dec. Exhibit 1 and Exhibit A-22" in its Response to Plaintiff's Motion, (Doc. 80 at 4.)

1. Exhibits 1, 3, and 5

Exhibit 1 to Plaintiff's Declaration is a Certificate of Baptism for William Enriquez in both Plaintiff's Motion, (Doc. 69-3 at 1–5), and Plaintiff's Response to Defendant's Motion, (Doc. 78-3 at 1–5). Because the Court finds that consideration of Exhibit 1 will not change the result on its ruling for summary judgment—whether Plaintiff had a bona fide religious belief—Defendant's objection is overruled.

Although Defendant next objects to Exhibit 3, it appears that Defendant may have intended to object to other evidence. Exhibit 3 to Plaintiff's declaration, contained in Plaintiff's

Response, (Doc. 78), is the alleged audio of the "termination phone call," (Doc. 78-4 at 3), but Defendant's Reply to Plaintiff's Response, (Doc. 85), refers to a letter with a post-marked date of September 29, 2017. (Doc. 85 at 1.) This letter is not Exhibit 3 to Plaintiff's declaration but Exhibit F-3 to Anthony Jaspar's deposition. (Doc. 78-2 at 58–59, 68–71.) The Court will therefore construe the objection to "Exhibit 3 to Plaintiff's declaration" as an objection to Exhibit F-3 to Mr. Jaspar's deposition. Because the Court finds that Exhibit F-3 does not affect its ruling on the underlying Motions, Defendant's objection is overruled.

Defendant objects to Exhibit 5 of Plaintiff's declaration. Exhibit 5 appears to be a picture of a text message conversation involving "Loves Ruben." (Doc. 78-4 at 12–14.) Because the Court finds that Exhibit 5 has no effect on the merits of Plaintiff's claim—whether Plaintiff resigned or was fired—Defendant's objection is overruled.

2. Exhibit A-22

Defendant finally objects to Plaintiff's Exhibit A-22. (Doc. 80 at 4.) Exhibit A-22 is Plaintiff's handwritten notes that document Plaintiff's interactions with Defendant. (Doc. 69-2 at 93–102.) Because the Court finds that Exhibit A-22 does not affect the merits of the underlying motion, the Court overrules the objection.

C. Miscellaneous Objections

Defendant objects to the legal arguments and additional facts contained in Plaintiff's Controverting Statement of Facts. (Doc. 85 at 2–3.) It also objects to Plaintiffs' facts unsupported by citations, as well as Controverting Fact 58. (Doc. 85 at 3.) The Court will not consider the legal arguments and unsupported assertions solely contained in the Controverting Statement of Facts; however, to the extent that Plaintiff properly supports and labels his factual and legal arguments in his other documents, the Court will consider them on that basis. Moreover, although it is true that Plaintiff sometimes fails to support the facts used in his legal analysis with citations, citations are provided in the "Statement of Facts" section. (Doc. 78 at 4–6); (Doc. 69-1 at 4–7.) To the extent that the Court can ascertain the record basis for an assertion based on the "Statement of Facts" citation, the Court will consider Plaintiff's factual claims.

III. Motions for Summary Judgment and Partial Summary Judgment

A. Legal Standard

***6** The purpose of summary judgment is "to isolate and dispose of factually unsupported claims." *Celotex Corp. v. Catrett*, 477 U.S. 317, 323–24 (1986). Summary judgment is appropriate if the evidence, viewed in the light most favorable to the nonmoving party, shows "that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a). Only disputes over facts that might affect the outcome of the suit will preclude the entry of summary judgment, and the disputed evidence must be "such that a reasonable jury could return a verdict for the nonmoving party." *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 248 (1986).

"[A] party seeking summary judgment always bears the initial responsibility of informing the district court of the basis for its motion, and identifying those portions of [the record] which it believes demonstrate the absence of a genuine issue of material fact." *Celotex*, 477 U.S. at 323. Parties opposing summary judgment are required to "cit[e] to particular parts of materials in the record" establishing a genuine dispute or "show[ ] that the materials cited do not establish the absence ... of a genuine dispute." Fed. R. Civ. P. 56(c)(1). A district court has no independent duty "to scour the record in search of a genuine issue of triable fact[.]" *Keenan*, 91 F.3d at 1279.

B. Statute of Limitations

Defendant argues that Plaintiff's state-law claims are barred by the statute of limitations. (Doc. 65 at 4.) "When a district court sits in diversity, or hears state law claims based on supplemental jurisdiction, the court applies state substantive law to the state law claims." *Mason & Dixon Intermodal, Inc. v. Lapmaster Int'l LLC*, 632 F.3d 1056, 1060 (9th Cir. 2011). State substantive law includes the state statute of limitations. *Albano v. Shea Homes Ltd. P'ship*, 634 F.3d 524, 530 (9th Cir. 2011). Federal courts must also "abide by a state's tolling rules, which are integrally related to statutes of limitations." *Id.*

Here, the Arizona Civil Rights Act ("ACRA") states that "*[i]n no event* shall any action be brought pursuant to this article more than one year after the charge to which the action relates has been filed." Ariz. Rev. Stat. § 41-1481(D)

(emphasis added). Although no Arizona court has directly addressed equitable tolling involving the one-year statute of limitations, the statutory language seems to foreclose such a result. Moreover, several federal cases have refused to apply equitable tolling under the ACRA when the plaintiff's sole reason for delay was a belated notice of the right to sue. *See, e.g.*, *Wood v. Univ. Physicians Healthcare*, No. CV-13-00063-PHX-JAT, 2014 WL 3721207, at *14 (D. Ariz. July 28, 2014); *Strand v. John C. Lincoln Health Network, Inc.*, No. CV-10-02112-PHX-NVW, 2011 WL 1253408, at *2 (D. Ariz. Mar. 31, 2011); *cf. Reed v. Pioneer Landscaping Materials Inc.*, No. CV 09-593-TUC-RCC, 2010 WL 11515553, at *4 (D. Ariz. Sept. 1, 2017) ("The ACRA requires that a party file a complaint within one year of the date that charges were filed with the Arizona Civil Rights Division, or within the 90 day-period after receipt of the Notice of Right to Sue, whichever comes first."). [7]

***7** Even assuming, however, that equitable tolling can be applied under § 41-1481(D), Plaintiff has failed to show why it should apply to him. Because Plaintiff filed his charge on December 5, 2017, (Doc. 68-3 at 2), he had until December 5, 2018 to file this lawsuit. Instead, Plaintiff did not file until July 18, 2019—well after the statute of limitations had expired. (Doc. 1.) Although Plaintiff may not have received his notice of right to sue until June 2019, [8] Plaintiff could have requested the notice from the Equal Employment Opportunity Commission ("EEOC") after his charge had been pending 180 days. 42 U.S.C. § 2000e-5(f)(1); *see also Smith v. Johnson*, No. C 11–4823 MMC, 2012 WL 1438898 (N.D. Cal. Apr. 25, 2012) ("Before filing a complaint under Title VII, a plaintiff ordinarily files a charge with the [EEOC] and, if ... the EEOC fails to so act on the charge within 180 days, the plaintiff may file suit without such letter."). Plaintiff has offered no justification for his failure to do so. In the absence of such justification, the Court will not apply equitable tolling. Defendant's Motion for Summary Judgment is granted on this ground.

C. Retaliation

To make out a prima facie case of retaliation under Title VII, Plaintiff must demonstrate that (1) he engaged in a protected activity, (2) he suffered an adverse employment action, and (3) there was a causal link between his activity and the employment decision. *Stegall v. Citadel Broad. Co.*, 350 F.3d 1061, 1065–66 (9th Cir. 2003). If the plaintiff can show all three elements, the burden shifts to the defendant "to articulate a legitimate, non-discriminatory reason for the adverse employment action." *Id.* at 1066. If the defendant provides the required reasoning, the plaintiff "bears the ultimate burden of demonstrating that the reason was merely a pretext for [retaliation]." *Id.*

1. Prima Facie Case

a. Engaged in Protected Activity

Title VII makes it illegal for employers to "discriminate against any individual ... because he has opposed any practice made an unlawful employment practice by this subchapter, or because he has made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing under this subchapter." 42 U.S.C. § 2000e-3(a). Although the Ninth Circuit has not decided whether requesting a religious accommodation constitutes "oppos[ing] ... an unlawful employment practice," the Eighth Circuit has determined that it does not. *EEOC v. N. Memorial Health Care*, 908 F.3d 1098 (8th Cir. 2018). Many courts, however, have held that accommodation requests are a protected activity under Title VII. *See, e.g.*, *Privler v. CSX Transp., Inc.*, No. 1:18-cv-1020 (BKS/CFH), 2021 WL 3603334, at *19 (N.D.N.Y. Aug. 13, 2021) (collecting cases); *EEOC v. JBS USA, LLC*, 339 F. Supp. 3d 1135, 1193 (D. Colo. 2018); *Creusere v. Bd. Of Educ.*, 88 F. App'x 813, 821 (6th Cir. 2003); *Williams v. Wal-Mart Assocs. Inc.*, No. 2:12–cv–03821–AKK, 2013 WL 979103, at *3 (N.D. Ala. Mar. 8, 2013). This line of cases is consistent with the Ninth Circuit's holding that the Title VII and ADA framework for retaliation are the same. *Barnett v. U.S. Air, Inc.*, 228 F.3d 1105, 1121 (9th Cir. 2000) (adopting the Title VII retaliation framework for ADA retaliation claims), *vacated on other grounds*, 535 U.S. 391 (2002); *Piccarreta v. Harmony Hospice of Scottsdale*, No. CV–12–00533–PHX–DGC, 2013 WL 6118641, at *3 (D. Ariz. Nov. 21, 2013) (collecting cases and holding that requests for accommodations are protected activity under the ADA).

Although the Court acknowledges the contrary Eighth Circuit precedent, the retaliation provisions of both Title VII and the ADA do not materially differ. [9] Requesting an accommodation under the ADA is clearly a protected activity, and the Court finds no reason why the analysis should

differ under Title VII. Moreover, failure to accommodate is an existing cause of action under Title VII, and it would contravene the purpose of the statute if the act that triggers an employer's duty to make reasonable accommodations [10] could legally be the basis for a later adverse employment action. Employers could simply intimidate employees to deter them from making accommodation requests out of fear of retaliation, which is exactly what the Title VII antiretaliation provision is designed to avoid. *See* *Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53, 57 (2006) (holding that an adverse employment action is an action that "could well dissuade a reasonable worker from making or supporting a charge of discrimination"). Therefore, in the absence of contrary Ninth Circuit authority, the Court holds that requesting a religious accommodation is a protected activity.

***8** Here, Plaintiff clearly engaged in a protected activity by making a request for a religious accommodation. Plaintiff informed Mr. Anaya that he could not work the Saturday he was scheduled because of his religion, and Mr. Anaya covered the route. (Doc. 69-2 at 41); (Doc. 67-7 at 11–12.) About two weeks later, on September 24, Mr. Astorga and Plaintiff discussed Plaintiff's request for a religious accommodation. (Doc. 78-4 at 6–8); (Doc. 81 at 7.) That meeting was recorded, and the following exchange occurred:

> [Plaintiff]: And if I can't work Saturdays, then I'm fired; right? [Mr. Astorga]: We'll see. Most likely, simón [in Spanish]. That's it.
>
> ...
>
> [Plaintiff]: I could tell you where I stand. It's the same – it's the same story. It's not going to change. The same thing I told Julio [Mr. Anaya], I'm going to tell you ... *I can't work Saturdays because that's my religion*, that's our worship, and that's – I keep the Sabbath and I follow the Exodus 20. And you can call it worship, whatever you want, you know. I mean, that's what I call it, that's how I do it. I keep the Sabbath. I'm a Sabbath keeper.

(Doc. 69-3 at 9–11 (emphasis added).) Plaintiff, therefore, made two requests for accommodation: one to Mr. Anaya and one to Mr. Astorga. Defendant does not dispute that these two conversations occurred. (Doc. 66 at 6–7.) Plaintiff's Motion is granted on this ground, and this element of his prima facie case is conclusively established. [11]

b. Adverse Employment Action

"[A]n action is cognizable as an adverse employment action if it is reasonably likely to deter employees from engaging in protected activity." *Ray v. Henderson*, 217 F.3d 1234, 1243 (9th Cir. 2000). The Ninth Circuit's takes an "expansive view" of such actions. *Id.* at 1241. Clearly, therefore, termination is an adverse employment action. *See* *Brooks v. City of San Mateo*, 229 F.3d 917, 928 (9th Cir. 2000). After the exchange above—in which Mr. Astorga essentially told Plaintiff that he had to work Saturday or "most likely" be fired—Plaintiff and Mr. Astorga also had the following exchange on the same phone call:

> [Mr. Astorga]: [I]f you're telling me that – that it's not going to change, then why even – why even continue it going any further? You know, let's just call it your last week and – and that's it?
>
> [Plaintiff]: Okay. So – all right. Well, that's – that's what it is, you know, I can't work because of that and that's my religion and that's my right. So you're saying last week was going to be my last week?
>
> [Mr. Astorga]: Well – well, simón [in Spanish]. Yeah, yeah, because I'll get you off the schedule, definitely, then.

(Doc. 78-4 at 7.)

The call transcript establishes that Plaintiff did not resign voluntarily but was fired for not working Saturdays. In addition to Mr. Astorga telling Plaintiff he would "most likely" be fired, Plaintiff clearly stated that he was not agreeing with Defendant's decision but would "respect [its] wishes." (Doc. 69-3 at 10–11.) Although Plaintiff's departure was processed as a "resignation," (Doc. 78-2 at 77), and Mr. Astorga testified that he believed Plaintiff had resigned, (Doc. 67-7 at 22), this evidence is insufficient to overcome the clear import of the phone call. *See* *Scott v. Harris*, 550 U.S. 372, 380 (2007) ("When opposing parties tell two different stories, one of which is blatantly contradicted by the record, so that no reasonable jury could believe it, a court should not adopt that version of the facts for purposes of ruling on a motion for summary judgment.") Plaintiff's Motion is granted on this ground, and Defendant's Motion is denied.

c. Causal Link

***9** To establish a causal link between Plaintiff's protected activity and the adverse employment action, Plaintiff must show that his protected activity was the but-for cause of the adverse action. *Univ. of Tex. Sw. Med. Ctr. v. Nassar*, 570 U.S. 338, 362 (2013). In this case, Plaintiff's protected activity was his request for a religious accommodation. Therefore, the critical inquiry is whether Defendant allegedly terminated Plaintiff because of that request. [12]

On September 24, Mr. Astorga sent Plaintiff a text message telling him he had been removed from the schedule. (Doc. 78-2 at 76.) Plaintiff then called Mr. Astorga, resulting in the following discussion:

> [Plaintiff]: What's – what's the purpose of the meeting? What's your –
>
> ...
>
> [Mr. Astorga]: My main point is that ... *you can't work Saturdays.* You know, you can't work Saturdays. You know, I need some [expletive] information, wey [in Spanish]. If not, we got to move on.
>
> ...
>
> [Mr. Astorga]: I mean, I – *I need guys to work Saturdays.* I really do, man. I mean, nothing personal, brother. You know, you're a – you're nice. I like you and all, but *if you can't, you can't.*
>
> [Plaintiff]: Yeah.
>
> ...
>
> [Mr. Astorga]: [B]ut – but that's okay if you're telling me that – that it's not going to change, then why even – why even continue in going any further? You know, let's just call it your last week and – and that's it?
>
> ...
>
> [Mr. Astorga]: [Y]eah, yeah, because you – yeah, because we get in a bind here, brother. You know, it's – it's nothing – nothing against your religion, nothing against you. [Plaintiff] is a – I mean, you stand for what you stand for, but I got to cover – *I got to cover [expletive] schedules*, dude, you know. And – and *we are a 365-day company* and we never close. This is a truck stop.
>
> [Plaintiff]: Yeah.
>
> [Mr. Astorga]: Even if it's Christmas. If it's Christmas, you work. *If you're on schedule, you work.* You know, everybody knows this. You know, I don't like the rules and we just follow them and that's what it calls for.

(Doc. 69-3 at 9–10 (emphasis added)). Per Mr. Astorga's testimony, Mr. Astorga did not take any steps prior to the phone call to determine whether Plaintiff could continue to be employed by Defendant without working Saturdays. (Doc. 78-1 at 102–03.) Instead, once Mr. Astorga confirmed that Plaintiff had requested all Saturdays off, Plaintiff was terminated. Moreover, during the phone call itself, Mr. Astorga repeatedly referenced the work schedule and told Plaintiff that it's "nothing personal," "nothing against you," and that Plaintiff is "nice." Mr. Astorga apparently had no problem with Plaintiff other than his request for accommodation. Because no genuine issue of material fact exists as to whether Plaintiff's request for a religious accommodation caused the allegedly adverse employment action, Plaintiff's Motion is granted, and the causation element of the prima facie case is conclusively established. Because all three elements of Plaintiff's prima facie case have been established, Plaintiff is entitled to summary judgment on these issues, and the burden shifts to Defendant to establish a legitimate, non-discriminatory reason.

2. Legitimate, Nondiscriminatory Reason

***10** Once a plaintiff establishes a prima facie case, the burden shifts to the defendant "to articulate a legitimate, non-discriminatory reason for the adverse employment action." *Stegall*, 350 F.3d at 1066. Here, Defendant contends that it could not both operate its business and allow Plaintiff to take every Saturday off. (Doc. 65 at 9–10.) As explained in the "undue hardship" analysis below, Defendant held itself out as a week-long operation, but Defendant's employees testified that there was some flexibility in the scheduling that was apparently not explored as an option for Plaintiff. *Supra* Section D.2. Because there is conflicting evidence on this point, a genuine issue of material fact exists as to whether Defendant can establish a nondiscriminatory reason for Plaintiff's termination. Accordingly, both Motions are denied on this ground.

D. Disparate Treatment Discrimination/Failure to Accommodate

Plaintiff relies on the same facts to establish disparate treatment as he does for failure to accommodate. (Doc. 69-1 at 7–13); (Doc. 78 at 12–13.) However, the very case Plaintiff repeatedly cites as supportive of his position —*E.E.O.C. v. Abercrombie & Fitch*—establishes that failure to accommodate is not a freestanding, separate claim: It is one way of proving disparate treatment. 575 U.S. 768, 771-72 (2015) ("These two proscriptions, often referred to as the 'disparate treatment' (or 'intentional discrimination') provision and the 'disparate impact' provision, *are the only causes of action under Title VII* (emphasis added)); *see also Jean-Pierre v. Naples Comm. Hosp., Inc.*, 817 F. App'x 822, 828 (11th Cir. 2020); *Walker v. Indian River Transp. Co.*, No: 8:15–cv–2246–T–27TGW, 2017 WL 388921, at *2 (M.D. Fla. Jan. 27, 2017); *Privler*, 2021 WL 3603334, at *12 & n.10; *Al Refat v. Franklin Fin. Servs. Corp.*, No. 1:19-CV-1507, 2021 WL 2588789, at *3 n.2 (M.D. Pa. June 24, 2021). Although Plaintiff is welcome to establish disparate treatment on different facts, he has not done so here. [13] *See Dykzeul v. Charter Commc'ns, Inc.*, No. CV 18-05826 DSF (GJSx), 2019 WL 8198218, at *10 (C.D. Cal. Nov. 18, 2019) ("Plaintiff's claim fits more naturally under the failure to accommodate rubric and it would be superfluous if the same facts supported liability under Title VII for both failure to accommodate and disparate treatment.") Because Plaintiff's claim is more properly characterized as a "disparate-treatment claim[ ] based on a failure to accommodate," *Abercrombie & Fitch*, 575 U.S. at 773, the Court will analyze the claims under a single failure to accommodate framework. *See, e.g.*, *id.*; *Jean-Pierre*, 817 F. App'x at 828.

To establish a prima facie case for failure to accommodate, the plaintiff must show that "(1) he had a bona fide religious belief, the practice of which conflicts with an employment duty; (2) he informed his employer of the belief and conflict; and (3) the employer discharged, threatened, or otherwise subjected him to an adverse employment action because of his inability to fulfill the job requirement." [14] *Peterson*, 358 F.3d at 606. If the plaintiff establishes all three elements, the burden then shifts to the defendant to show that it "initiated good faith efforts to accommodate reasonably the employee's religious practices or that it could not reasonably accommodate the employee without undue hardship." *Tiano v. Dillard Dep't Stores, Inc.*, 139 F.3d 679, 681 (9th Cir. 1998).

***11** No party disputes that Plaintiff informed Defendant of his religious belief and conflict. Moreover, as established above, no reasonable jury could find that Plaintiff resigned. Therefore, the Court will analyze only the first element to determine whether Plaintiff has established a prima facie case. The Court will then consider undue hardship.

1. Bona Fide Religious Belief

Bona fide religious beliefs are "moral or ethical beliefs as to what is right and wrong which are sincerely held with the strength of traditional religious views." 29 C.F.R. § 1605.1. It is therefore "entirely appropriate, indeed necessary, for a court to engage in analysis of the sincerity—as opposed, of course to the verity—of someone's religious beliefs in ... the Title VII context." *E.E.O.C. v. Alamo Rent-A-Car LLC*, 432 F. Supp. 2d 1006, 1011 (D. Ariz. 2006) (quoting *Philbrook v. Ansonia Bd. of Educ.*, 757 F.2d 476, 481 (2d Cir. 1985)). The consistency of the plaintiff's practices is relevant but not dispositive of the sincerity of belief. *See, e.g.*, *Perticone v. Bell Motors LLC*, No. CV-16-02852-PHX-DGC, 2018 WL 333438, at *3 (D. Ariz. Jan. 9, 2018) (holding that the plaintiff's willingness to work on Sundays created an issue of fact); *Warren v. Shaw Grp., Inc.*, 825 F. Supp. 2d 1052, 1056 (D. Nev. 2011) (granting summary judgment for the defendant and holding that the plaintiff's inconsistent practices failed to create a genuine issue of fact as to sincerity of belief). *But see, e.g.*, *Rivas v. Caesars Enter. Servs., LLC*, No. 2:19-cv-01637-KJD-DJA, 2021 WL 3572659, at *4 (D. Nev. Aug. 11, 2021) ("Perfection is not required to indicate the sincerity of a belief."); *EEOC v. Red Robin Gourmet Burgers, Inc.*, No. C04-1291JLR, 2005 WL 2090677, at *3 (W.D. Wash. Aug. 29, 2005) (holding that the plaintiff's testimony about his belief not to cover his tattoos created an issue of fact even though the plaintiff had a "practice of covering his tattoos during [a religious holiday], when he [was] cold, and while wearing long-sleeve clothing and costumes.")

Here, Plaintiff worked some Saturdays with his previous employer, Fann Contracting, and some with Defendant. (Doc. 66-4); (Doc. 69-1 at 5–6.) However, this fact alone does not establish the lack of a bona fide religious belief. *See Rivas*, 2021 WL 3572659, at *4. Plaintiff testified that he repeatedly told Defendant's employees about his religious belief, refused

to work because of it, and was fired because of it. (Doc. 78-1 at 36, 43, 137.) Moreover, although Plaintiff admitted to working at least twelve Saturdays with Fann Contracting, (Doc. 86 at 6), [15] Plaintiff testified that he worked for Fann Contracting seasonally for three years, (Doc. 66-2 at 93), and that Fann had a policy of firing people who "refused to come in." (Doc. 66-2 at 83.). A reasonable juror could find that Plaintiff's inconsistent practices demonstrate his belief of not working the Sabbath is not sincerely held. On the other hand, a reasonable juror could likewise find that Plaintiff's past practices were justifiable due to economic duress or the threat of termination. Because there is an issue of fact, both Motions are denied as to this element.

2. Undue Hardship

***12** The defendant bears the burden of proving an undue hardship. *See Balint v. Carson City*, 180 F.3d 1047, 1051 (9th Cir. 1999). "An accommodation causes an 'undue hardship' when it results in more than a de minimis cost to the employer." *Heller v. EBB Auto Co.*, 8 F.3d 1433, 1440 (9th Cir. 1993). "Whether a proposed accommodation would cause undue hardship must be determined in the particular factual context of the case." *Opuku-Boateng v. California*, 95 F.3d 1461, 1468 (9th Cir. 1996). "A claim of undue hardship cannot be supported by merely conceivable or hypothetical hardships; instead, it must be supported by proof of 'actual imposition on co-workers or disruption of the work routine.' " *Tooley v. Martin–Marietta Corp.*, 648 F.2d 1239, 1243 (9th Cir. 1981) (quoting *Burns v. S. Pac. Transp. Co.*, 589 F.2d 403, 406–07 (9th Cir. 1978)).

Defendant repeatedly represented itself as a "24/7/365 operation." (Docs. 66-5 at 4; 66-6 at 5; 66-7 at 2; 67-4 at 2; 67-9 at 2.) Mitchell Martin ("Mr. Martin"), who oversaw "the route planning and logistics," (Doc. 78-2 at 12), testified that weekly schedules varied based on sales volume at a given location, (Doc. 67-6 at 5), and that although it was "preferred" that deliveries were made during the workweek, Defendant "[didn't] really take that into consideration as much as getting all of the work covered" when setting the schedules. (Doc. 67-6 at 6.) Also, Mr. Astorga testified that "[he] need[ed] people to work weekends ... [because] there's no set schedules in our hiring in any – in any division"; that "there was nothing" Plaintiff could do without working on Saturdays; that "there's no guarantee for – for Monday through Friday operations that [Defendant] has"; and that schedules "will always change" because "it's never set in stone." (Doc. 67-7 at 12, 15, 23.)

However, Mr. Astorga also testified that he did not "see if there was any way that [Plaintiff] could continue to work at [Defendant] without working on Saturdays"; never "look[ed] to see if there was any job [Plaintiff] could perform at [Defendant] without working on Saturdays"; and never "[had] any conversations with Mr. Martin to see if there were any routes that [Plaintiff] could work that did not involve working on Saturdays." (Doc. 78-1 at 102–03.) Moreover, Mr. Astorga testified that he only knew of "a few" drivers who started driving on Monday morning and could not finish their route by Friday, (Doc. 78-1 at 115), and Mr. Martin testified that as Regional Manager, Mr. Anaya could have "move[d] or unload[ed] to another driver and switch[ed] them around as needed," (Doc. 78-2 at 15), and that freight drivers could deliver to their destinations "24/7." (Doc. 78-2 at 16.) Mr. Hall, an operations manager, (Doc. 78-2 at 37), testified that although the schedules were designed to start on Mondays, some drivers could pick up their loads on Sunday instead of Monday, (Doc. 78-2 at 31), and that drivers who picked up their loads on Sunday could finish on Thursdays, barring any unforeseen delays. (Doc. 78-2 at 35.) He also testified that there were "all sorts of routes" depending on the week. (Doc. 78-2 at 37.)

There is a genuine issue of material fact as to whether allowing Plaintiff not to work Saturdays constituted an "undue hardship." Although Defendant certainly represented itself as a week-long operation, Mr. Astorga testified that he did very little to determine whether any accommodation was feasible—like, as Mr. Hall indicated, scheduling Plaintiff to pick up his truck on Sunday. If there were truly "all sorts of routes" available during any given week, Defendant has not explained why Plaintiff could not have been given a shorter route. Although it is true that Defendant could not account for unforeseen delays, Defendant has not conclusively shown that any of the proposed alternatives would have caused "more than a de minimis cost." *Heller*, 8 F.3d at 1440. However, the testimony of Defendant's employees about the difficulties of creating set schedules based on the varying sales volumes is sufficient to create a genuine issue of fact. Therefore, both Plaintiff's and Defendant's Motions for Summary Judgment are denied on this issue. [16]

E. Failure to Mitigate

***13** "Title VII 'requires the claimant to use reasonable diligence in finding other suitable employment.' " *Odima v. Westin Tucson Hotel*, 53 F.3d 1484, 1497 (9th Cir. 1995) (quoting *Ford Motor Co. v. EEOC*, 458 U.S. 219, 231 (1982)). An employer raising a failure to mitigate damages defense has the burden of showing there were substantially equivalent jobs available, and the employee failed to use reasonable diligence in pursuing them. *EEOC v. Farmer Bros. Co.*, 31 F.3d 891, 906 (9th Cir. 1994).

Although other circuit courts have held that a defendant need not prove the availability of substantially equivalent jobs if it can show that the employee failed to use reasonable diligence, the Ninth Circuit has not modified the general rule, which requires the defendant to show both elements. *Odima*, 53 F.3d at 1497 (refusing to decide the issue); *see also* *Greenway v. Buffalo Hilton Hotel*, 143 F.3d 47, 54 (2d Cir. 1998); *Weaver v. Casa Gallardo, Inc.*, 922 F.2d 1515, 1527 (11th Cir. 1991); *Sellers v. Delgado Coll.*, 902 F.2d 1189, 1193 (5th Cir. 1990); *Quint v. AE Staley Mfg. Co.*, 172 F. 3d 1, 16 (1st Cir. 1999). This Court is bound by Ninth Circuit rule, which requires Defendant to show both elements to establish failure to mitigate. *Farmer Bros*, 31 F.3d at 906; *see also* *Kawar v. JPMorgan Chase & Co.*, No. CV-08-0046-PHX-DGC, 2009 WL 1698918, at *6 (D. Ariz. June 16, 2009); *Besco v. City of Longview*, No. 3:15-CV-05493-RJB, 2016 WL 3227963, at *7 (W.D. Wash. June 13, 2016). Defendant has failed to do so in this case. Its Motion is silent as to the availability of substantially equivalent jobs, and thus it has failed to meet its burden on that element. Summary judgment is denied on Plaintiff's failure to mitigate.

F. After-Acquired Defense

Defendant moves for summary judgment on its recently pleaded after-acquired evidence defense.[17] "Where an employer seeks to rely upon after-acquired evidence of wrongdoing, it must first establish that the wrongdoing was of such severity that the employee in fact would have been terminated on those grounds alone if the employer had known of it at the time of the discharge." *McKennon v. Nashville Banner Pub. Co.*, 513 U.S. 352, 362–63 (1995). The burden of proof is on the employer to "establish not only that it *could* have fired an employee for the later-discovered misconduct, but that it would in fact have done so." *O'Day v. McDonnel Douglas Helicopter Co.*, 79 F.3d 756, 759 (9th Cir. 1996).

Defendant provides no evidence that it would have fired or refused to hire Plaintiff had it known of his prior criminal convictions. The only evidence on this point, portions of Mr. Stieber's declaration, have been stricken and will not be considered. The rest of the evidence on this issue concerns whether Plaintiff lied on his job application, but that fact is immaterial without a showing that Defendant would have acted on such information. Therefore, Defendant's Motion is denied. However, the Court notes that because Defendant has recently amended its Answer, and because Defendant was misled concerning this issue, Defendant will be allowed to put on any disclosed witness to testify as to Defendant's practices regarding prior convictions at trial.

G. Legitimate Business Reason

Plaintiff also argues that he is entitled to summary judgment on Defendant's ninth affirmative defense: That Plaintiff was fired not because of his religious practice, but because of other reasons. (Doc. 14 at 8); (Doc. 69-1 at 19–20.) Defendant does not seem to offer any evidence or argument to the contrary.[18] Moreover, the Court finds this defense superfluous. As discussed above, the transcript establishes that Plaintiff was (allegedly) fired for being unable to work on Saturdays. Whether it was unlawful for Defendant to do so rests largely upon whether it would pose an undue hardship, which remains an issue in this case. Therefore, because this defense is superfluous, and because Defendant offers no argument against dismissal, the Court grants Plaintiff's Motion for Summary Judgment on this ground.

CONCLUSION

***14** Because Plaintiff has established a genuine issue of material fact as to all federal claims and their elements, Defendant's Motion for Summary Judgment is denied as to those claims. Defendant's Motion is granted as to the state-law claims because they are barred by the statute of limitations. Because Plaintiff has established the absence of a genuine issue of material fact, Plaintiff's Motion is granted as to (1) his prima facie case for retaliation; (2) Defendant's ninth affirmative defense; and (3) two elements of his prima facie case for failure to accommodate. The rest of Plaintiff's Motion is denied.

IT IS HEREBY ORDERED that Plaintiff's Motion for Partial Summary Judgment (Doc. 69) is **GRANTED** in part and **DENIED** in part as to Count III. Plaintiff's Motion is **GRANTED** as to (1) whether Plaintiff engaged in protected activity; (2) whether Plaintiff suffered an adverse employment action; and (3) causation. The Motion is **DENIED** as to whether Defendant had a legitimate, nonretaliatory reason for Plaintiff's termination.

IT IS FURTHER ORDERED that Plaintiff's Motion for Partial Summary Judgment (Doc. 69) is **GRANTED** in part and **DENIED** in part as to Count II. Plaintiff's Motion is **GRANTED** as to (1) whether Plaintiff informed Defendant of his religious belief; and (2) whether Defendant subjected Plaintiff to an adverse employment action. The Motion is **DENIED** as to the existence of a bona fide religious belief and as to undue hardship.

IT IS FURTHER ORDERED that Plaintiff's Motion for Partial Summary Judgment (Doc. 69) is **GRANTED** as to Defendant's Ninth affirmative defense; and **DENIED** as to Counts I, IV, V, VI, and Defendant's Thirteenth affirmative defense.

IT IS FURTHER ORDERED that Defendant's Motion for Summary Judgment (Doc. 65) is **GRANTED** in part and **DENIED** in part. Defendant's Motion is **GRANTED** as to the state-law claims, Counts IV, V, VI; and **DENIED** as to all other counts.

All Citations

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Footnotes

1 The *Gil* court was applying the 2008–09 local rule, which required objections to evidence in a summary judgment motion to be in the responsive statement of facts: "An objection to the admission of evidence ... must be presented in the objecting party's responsive or reply memorandum (or, if the underlying motion is a motion for summary judgment, in the party's response to another party's separate statement of material facts)." LRCiv. 7.2(m)(2) (2008). Notably, the present version of the rule now states, "If the underlying motion is a motion for summary judgment, an objection may be included in a party's response to another party's separate statement of material facts *in lieu of (or in addition to) including it in the party's responsive memorandum.*" LRCiv. 7.2(m)(2) (2020) (emphasis added).

2 To the extent that Plaintiff objects to evidence based on Federal Rules of Evidence 601 and 602, these objections are denied on those grounds. Defendant has met its summary judgment burden of showing competency and personal knowledge of its evidence.

3 Defendant failed to provide the declaration to the Court with its summary judgment motion. Instead, Defendant filed a Notice of Errata, (Doc. 96), the day before oral argument, which attached the declaration.

4 Moreover, the documents are likely business records, which the Custodian of Records could establish at trial. *See* *Sandoval*, 985 F.3d at 666; Fed. R. Evid. 803(6).

5 "If new information is revealed in a written discovery response or a deposition in a manner that reasonably informs all parties of the information, the information need not be presented in a supplemental response." (Doc. 5 at 6.)

6 Defendant also objects to Exhibit 4 of Plaintiff's declaration—the transcript—because it is unauthenticated. (Doc. 85 at 1); (Doc. 78-4 at 4–11.) Mr. Astorga testified to the transcript's accuracy, (Doc. 69-2 at 127–28), and, as stated above, the Court finds no reason not to consider it at summary judgment.

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7 *Salgado v. Atlantic Richfield Co.*, 823 F.2d 1322, 1324–25 (9th Cir. 1987), is inapposite because the court was interpreting California law, which did not include the "in no event" language present in Ariz. Rev. Stat. § 41-1481. *Id.* at 1324 n.1; 1984 Cal. Stat. 1792. Moreover, the California statute of limitations was based on when the notice of the right to sue was issued, not when the charge was filed. 823 F.2d at 1324 n.1; 1984 Cal. Stat. 1792.

8 Although Plaintiff neither made this argument nor attached the Notice to his Response, the Notice was attached as Exhibit A to the Complaint. (Doc. 9.)

9 The relevant language under the ADA is "because such individual has opposed any act or practice made unlawful by this chapter," 42 U.S.C. § 12203(a), and the relevant language under Title VII is "because he has opposed any practice made an unlawful employment practice by this subchapter," 42 U.S.C. § 2000e-3.

10 The Court recognizes that *Abercrombie* likely abolished the requirement that an employee make a formal accommodation request to trigger liability for failure to accommodate. 575 U.S. at 773. As *Abercrombie* noted, "the intentional discrimination provision prohibits certain *motives*, regardless of the state of the actor's knowledge." *Id.* However, *Abercrombie*'s holding does not mean that a plaintiff who actually makes an accommodation request may be denied relief merely because they did more than what was legally required.

11 Pursuant to Federal Rule of Civil Procedure 56(g), if a court "does not grant all the relief requested by the motion, it may enter an order stating any material fact ... that is not genuinely in dispute" is established in the case. Fed. R. Civ. P. 56(g).

12 Although Defendant argues that Plaintiff must show more than temporal proximity to establish causation, (Doc. 80 at 11), Plaintiff has done so here. Mr. Astorga's failure to investigate whether Plaintiff's request was feasible, coupled with the alleged termination phone call, demonstrates that regardless of any hardship, Plaintiff's request was denied merely by virtue of Plaintiff having made it.

13 Although Plaintiff does argue liability under a different set of facts in his Reply, (Doc. 86 at 9–10), the Court will not consider arguments made for the first time in a Reply. *See* *Zamani v. Carnes*, 491 F.3d 990, 997 (9th Cir. 2007) ("The district court need not consider arguments raised for the first time in a reply brief.").

14 The "knowledge" requirement has since been relaxed by *Abercrombie.* 575 U.S. at 772–73.

15 Defendant asserts that this number was as high as thirty-five. (Doc. 65 at 12.) Whether the number was twelve or thirty-five is not material to the Court's decision.

16 Even considering the Hall and Astorga declarations, (Docs. 68 at 1–3; 66-1 at 1–3), their conclusory assertions do not undermine the Court's conclusion. Both declarations assert that "Scheduling changes were not possible due to the varying nature and length of the routes Freight Drivers drove." (Docs. 66-1 at 3; 68 at 2). However, Mr. Martin testified that Mr. Anaya could make scheduling changes when needed, (Doc. 78-2 at 15), and Mr. Hall testified that some drivers could pick their loads up on Sundays even when the schedules began on Mondays. (Doc. 78-2 at 31.) Mr. Hall even confirmed that drivers picking up loads on Sundays were "typically" finished by Thursdays, unless there were unforeseen delays. (Doc. 78-2 at 35.) Neither declaration addresses why Plaintiff could not pick up his truck on Sunday, complete a five-day route, and finish by Thursday. Even if Defendant could not guarantee there wouldn't be an unforeseen delay, Defendant has not

established why this accommodation would pose "more than a de minimis cost" when it was the "typical" outcome. (Doc. 78-2 at 35.)

17 Defendant recently amended its Answer to add the defense. (Doc. 100.)

18 Mr. Astorga testified to as much, admitting that he never had any discussions with anyone about terminating Plaintiff for his job performance. (Doc. 78-1 at 105–06.)

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2023 WL 2071483
Only the Westlaw citation is currently available.
United States District Court, W.D. Michigan, Southern Division.

Denise HASKINS, Plaintiff,
v.
BIO BLOOD COMPONENTS, Defendant.

Case No. 1:22-cv-586
|
Signed February 17, 2023

Attorneys and Law Firms

David Peters, Livonia, MI, for Plaintiff.

Lauren Harrington, Donald Campbell Bulea, Ogletree Deakins Nash Smoak & Stewart PC (MI), Birmingham, MI, for Defendant.

OPINION

HALA Y. JARBOU, CHIEF UNITED STATES DISTRICT JUDGE

***1** Plaintiff Denise Haskins brings this action against her former employer, Bio Blood Components. [1] Before the Court is Defendant's motion to dismiss the complaint for failure to state a claim (ECF No. 8). For the reasons herein, the Court will grant Defendant's motion in part.

I. BACKGROUND

According to Plaintiff's complaint, she was employed by Defendant from October 2019 to February 13, 2021. (Compl. ¶ 17, ECF No. 1.) Her job duties included "screening patients seeking to donate their plasma." (*Id.* ¶ 18.) Her job also required her to "routinely interact" with another employee, "RS," who was born female. (*Id.* ¶ 19.) Plaintiff had known RS for several years. In February 2021, RS told co-workers that he identifies as a man, and he wanted to be referred to by "new" pronouns. (*Id.* ¶ 20.)

Plaintiff, who is a "believing Christian," "sincerely believes that she cannot live a lie and remain within the truth." (*Id.* ¶ 21.) She believes that "living a lie and being forced to repeat that lie out loud with her own lips is a significant violation of her right to practice her religion." (*Id.* ¶ 22.) Apparently, she did not want to use male pronouns when referring to RS.

On February 13, 2022, Plaintiff's supervisor, Kristen, informed Plaintiff that RS had filed a complaint about Plaintiff. In a "back-and-forth conversation," Kristen told Plaintiff that RS "had the right to not be bullied or harassed[.]" (*Id.* ¶ 25.) Plaintiff responded that she "had the right of free speech and could not have her speech compelled to tell a lie because she was a believing Christian who will not live a lie." (*Id.*) Plaintiff alleges that she asked for a "religious accommodation," but Kristen denied that request "without any consideration" and asked Plaintiff to write a letter of resignation. (*Id.* ¶¶ 26, 27.) After Plaintiff refused to resign, Defendant terminated her employment.

Based on the foregoing, Plaintiff claims that Defendant discriminated against her on account of her religion, in violation of Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e et seq., and Michigan's Elliott-Larsen Civil Rights Act (ELCRA), Mich. Comp. Laws § 37.2101 et seq.

Defendant moves for dismissal of the complaint for failure to state a claim.

II. DISMISSAL STANDARD

A complaint may be dismissed for failure to state a claim if it fails " 'to give the defendant fair notice of what the ... claim is and the grounds upon which it rests.' " *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007) (quoting *Conley v. Gibson*, 355 U.S. 41, 47 (1957)). While a complaint need not contain detailed factual allegations, a plaintiff's allegations must include more than labels and conclusions. *Twombly*, 550 U.S. at 555; *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) ("Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice."). The Court must determine whether the complaint contains "enough facts to state a claim to relief that is plausible on its face." *Twombly*, 550 U.S. at 570. "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Iqbal*, 556 U.S. at 679. "[W]here the well-pleaded facts do not permit the

court to infer more than the mere possibility of misconduct, the complaint has alleged—but it has not 'show[n]'—that the pleader is entitled to relief." *Id.* (quoting Fed. R. Civ. P. 8(a)(2)).

***2** Assessment of the complaint under Rule 12(b)(6) must ordinarily be undertaken without resort to matters outside the pleadings; otherwise, the motion must be treated as one for summary judgment under Rule 56. *Wysocki v. Int'l Bus. Mach. Corp.*, 607 F.3d 1102, 1104 (6th Cir. 2010). "However, a court may consider exhibits attached to the complaint, public records, items appearing in the record of the case, and exhibits attached to defendant's motion to dismiss, so long as they are referred to in the complaint and are central to the claims contained therein, without converting the motion to one for summary judgment." *Gavitt v. Born*, 835 F.3d 623, 640 (6th Cir. 2016).

III. ANALYSIS

A. Title VII

Title VII prohibits employers from discharging or discriminating against any individual because of that individual's "race, color, religion, sex, or national origin[.]" 42 U.S.C. § 2000e-2. The statute defines "religion" as

> all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he is unable to reasonably accommodate to an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business.

42 U.S.C. § 2000e(j).

"There are two basic types of religious discrimination claims that an individual may bring ... under Title VII: disparate treatment claims and religious accommodation claims." *Reed v. Int'l Union*, No. 07-2505, 2009 WL 5943111, at *2 (6th Cir. May 7, 2009).

1. Disparate Treatment

Defendant argues that Plaintiff does not state a claim for disparate treatment under Title VII. In response, Plaintiff denies making any such claim. (Pl.'s Resp. Br. 6, ECF No. 13.) Accordingly, the Court will dismiss such a claim.

2. Religious Accommodation

Defendant also argues that the complaint fails to state a religious accommodation claim under Title VII. To establish a " 'prima facie case of religious discrimination' " for her employer's failure to provide a reasonable accommodation, Plaintiff must show that " '(1) [s]he holds a sincere religious belief that conflicts with an employment requirement; (2) [s]he has informed the employer about the conflicts; and (3) [s]he was discharged or disciplined for failing to comply with the conflicting employment requirement.' " *Yeager v. FirstEnergy Generation Corp.*, 777 F.3d 362, 363 (6th Cir. 2015) (quoting *Tepper v. Potter*, 505 F.3d 508, 514 (6th Cir. 2007)). If Plaintiff establishes her "prima facie case," then Defendant "has the burden to show that it could not 'reasonably accommodate' [her] religious beliefs without 'undue hardship.' " *Id.* (quoting *Tepper*, 505 F.3d at 514).

Here, Plaintiff alleges that she has a religious belief that conflicted with her employer's requirement that she use her co-worker's preferred gender pronouns. She also alleges that she informed her employer of this conflict and that her employer terminated her without offering any accommodation. These allegations are sufficient to establish a prima facie case.

Defendant responds that it could not reasonably accommodate Plaintiff's beliefs without suffering an undue hardship. " '[T]o require an employer to bear more than a *de minimis* cost in order to accommodate an employee's religious beliefs is an undue hardship.' " *Tepper*, 505 F.3d at 514 (quoting *Cooper v. Oak Rubber Co.*, 15 F.3d 1375, 1378 (6th Cir. 1994)). Specifically, Defendant argues that allowing Plaintiff to continue working for Defendant while refusing to refer to her co-workers by their preferred pronouns would expose Defendant to liability under Title VII. "Title VII does not require an employer

to reasonably accommodate an employee's religious beliefs if such accommodation would violate a federal statute." *Yeager*, 777 F.3d at 363. Defendant argues that using improper pronouns to refer to RS or other transgender employees would amount to unlawful harassment under Title VII. Indeed, the Equal Employment Opportunity Commission ("EEOC") has concluded that "intentionally and repeatedly using the wrong name and pronouns to refer to a transgender employee could contribute to an unlawful hostile work environment." EEOC, *Protections Against Employment Discrimination Based on Sexual Orientation or Gender Identity* (June 15, 2021), https://www.eeoc.gov/laws/guidance/protections-against-employment-discrimination-based-sexual-orientation-or-gender. [2] At this stage, however, it is not clear whether and to what extent Plaintiff used, or intended to use, any pronouns when referring to RS. Plaintiff does not describe the details of RS's complaint about her. Moreover, individuals working directly with one another generally use names rather than pronouns. As such, the Court cannot assess the nature of the hardship.

***3** In her complaint, Plaintiff alleges that Defendant could have allowed her to "simply tell[ ] [RS] the truth ... that she- he- cannot change the work of the Lord to suit a personal whim or accommodate a mental illness or belief system." (Compl. ¶ 35.) Telling RS that his gender identity is a personal whim or a mental illness might qualify as harassment under Title VII, and allowing Plaintiff to do this likely would not be a reasonable accommodation even if it did not violate Title VII. However, Plaintiff alleges other possible accommodations in her complaint, including transfer to another work location. Defendant asserts that this accommodation would not be reasonable because the nearest location to which Plaintiff could be transferred is 90 miles away; however, the Court cannot consider those facts at this stage. They are not part of the complaint. Thus, the Court cannot determine whether such an accommodation would impose an undue hardship.

In short, the complaint alone does not demonstrate that Defendant could not reasonably accommodate Plaintiff's beliefs without undue hardship. *Cf.* *EEOC v. Robert Bosch Corp.*, 169 F. App'x 942, 944 (6th Cir. 2006) ("The reasonableness of an employer's attempt at accommodation must be determined on a case-by-case basis and is generally a question of fact for the jury, rather than a question of law for the court."). Accordingly, the Court will not dismiss Plaintiff's claim that Defendant failed to accommodate her religious beliefs.

Plaintiff further contends that this case involves not just Defendant's failure to provide a reasonable accommodation, but also Defendant's failure to comply with a separate "legal obligation" to engage in an interactive process or "sit down meeting" with Plaintiff to discuss a reasonable accommodation. (Pl.'s Resp. Br. 7-9.) However, the cases cited by Plaintiff do not support such a requirement. *See EEOC v. Abercrombie & Fitch Stores, Inc.*, 575 U.S. 678 (2015); *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63 (1977). None of them refer to a "sit down meeting" or an interactive process like the one required under the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101 et seq. *See* *Kleiber v. Honda of Am. Mfg., Inc.*, 485 F.3d 862, 871 (6th Cir. 2007) (discussing the ADA interactive process). At any rate, the Court will deny Defendant's motion to dismiss the foregoing Title VII claim for the reasons discussed above.

B. ELCRA

1. Disparate Treatment

Defendant argues that Plaintiff does not state a disparate treatment claim under the ELCRA, which is generally subject to the same standards as a Title VII claim. (*See* Def.'s Br. 5 n.4, ECF No. 8.) As discussed above, Plaintiff denies making a disparate treatment claim. Consequently, the Court will dismiss that claim.

2. Religious Accommodation

Defendant argues that the ELCRA " 'does not include an affirmative duty to accommodate an employee's religious beliefs.' " (Def.'s Br. 6 n.5 (quoting *Lively v. Kroger Co. of Mich.*, No. 19-12961, 2021 WL 791024, at *5 (E.D. Mich. Mar. 2, 2021)).) Plaintiff does not respond to this argument and the Court cannot find any authority supporting such a claim. Therefore, the Court will dismiss this claim as well.

C. First Amendment

Plaintiff's complaint alludes to her rights under the First Amendment. It seeks various declarations that her speech is protected by the First Amendment. (*See* Compl. ¶¶ G, H, J, K.) As noted by Defendant, however, the First Amendment restricts the Government, not private employers

like Defendant. *See, e.g.,* *Pub. Utilities Comm'n of D.C. v. Pollak*, 343 U.S. 451, 461 (1952). Consequently, the Court will dismiss the First Amendment claim, if any, asserted in the complaint.

IV. CONCLUSION

For the reasons stated, Plaintiff's complaint states a viable claim under Title VII for a failure to accommodate her religious beliefs. Plaintiff does not state a disparate impact claim under Title VII, a claim under the ELCRA, or a claim under the First Amendment. Therefore, the Court will grant Defendant's motion to dismiss, in part.

***4** The Court will enter an order that is consistent with this Opinion.

All Citations

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Footnotes

1 Defendant contends that its actual name is Interstate Blood Bank, Inc.

2 As noted on the EEOC webpage, one federal district court has held that the EEOC's guidance is unlawful and another has enjoined its implementation against certain plaintiffs.

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